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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:07-cv-01355-LTB-MJW

United States of America For The Use and Benefit of Sun
Construction Company, Inc. v. Torix General Contractors, LLC et
al

Assigned to: Judge Lewis T. Babcock

Referred to: Magistrate Judge Michael J. Watanabe

Case in other court: USCA, 11-01145

USCA, 11-01168

USCA, 11-01430

USCA, 11-01434

Cause: 40:3131 Miller Act

Date Filed: 06/27/2007

Date Terminated: 11/24/2010

Jury Demand: Plaintiff

Nature of Suit: 130 Miller Act

Jurisdiction: Federal Question

Plaintiff

Sun Construction Company, Inc.

a Colorado corporation

TERMINATED: 04/08/2010

represented by **Jeffrey C. Culbertson**

W.J. Bradley Mortgage Capital LLC

6465 South Greenwood Plaza Boulevard

Suite 500

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ATTORNEY TO BE NOTICED

Plaintiff

**United States of America For The Use
and Benefit of Sun Construction**

Company, Inc.
a Colorado corporation

V.

Intervenor Plaintiff

**Fidelity and Deposit Company of
Maryland**
a Maryland corporation

represented by **Patrick Quinn Hustead**
Hustead Law Firm, PC
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Regency Plaza One
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303-721-5000
Fax: 303-721-5001
Email: clc@thlf.com

V.

Defendant

Torix General Contractors, LLC
a Colorado limited liability company
formerly known as
Alliance General Contractors

represented by **Scott Joseph Mikulecky**
Sherman & Howard LLC
90 South Cascade Avenue
Suite 1500
Colorado Springs, CO 80903
719-475-2440
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TERMINATED: 03/31/2008

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ATTORNEY TO BE NOTICED

Defendant

**Travelers Casualty and Surety Company
of America**
a Connecticut corporation

represented by **Scott Joseph Mikulecky**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Bret R. Gunnell
(See above for address)

Douglas M. Flinn
(See above for address)
TERMINATED: 03/31/2008

Katherine Dawson Varholak
(See above for address)
ATTORNEY TO BE NOTICED

Matthew O. Stromquist
(See above for address)

Ryan Joseph Klein
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

St. Andrews/Alliance Joint Venture
a joint venture

represented by **Scott Joseph Mikulecky**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Bret R. Gunnell
(See above for address)
ATTORNEY TO BE NOTICED

Douglas M. Flinn
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TERMINATED: 03/31/2008

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Matthew O. Stromquist
(See above for address)
ATTORNEY TO BE NOTICED

Ryan Joseph Klein
(See above for address)
ATTORNEY TO BE NOTICED

ThirdParty Defendant

MLL Construction, Incorp.
a Colorado corporation
TERMINATED: 03/06/2009

represented by **Michael Evan Sweet**
M. Evan Sweet, Law Office of
5353 West Dartmouth Avenue
#504
Denver, CO 80227-5517
303-980-8031
Fax: 303-985-2403
Email: mesattorney@gmail.com
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Counter Claimant

Torix General Contractors, LLC
a Colorado limited liability company
TERMINATED: 05/01/2009

represented by **Scott Joseph Mikulecky**
(See above for address)
LEAD ATTORNEY
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Bret R. Gunnell
(See above for address)

Douglas M. Flinn
(See above for address)
TERMINATED: 03/31/2008

Katherine Dawson Varholak
(See above for address)
ATTORNEY TO BE NOTICED

Matthew O. Stromquist
(See above for address)

Ryan Joseph Klein
(See above for address)
ATTORNEY TO BE NOTICED

Counter Claimant

Travelers Casualty and Surety Company of America
a Connecticut corporation
TERMINATED: 05/01/2009

represented by **Scott Joseph Mikulecky**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Bret R. Gunnell
(See above for address)

Douglas M. Flinn
(See above for address)
TERMINATED: 03/31/2008

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ATTORNEY TO BE NOTICED

Matthew O. Stromquist
(See above for address)

Ryan Joseph Klein
(See above for address)
ATTORNEY TO BE NOTICED

Counter Claimant

St. Andrews/Alliance Joint Venture
a joint venture
TERMINATED: 05/01/2009

represented by **Scott Joseph Mikulecky**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Bret R. Gunnell
(See above for address)

Douglas M. Flinn
(See above for address)
TERMINATED: 03/31/2008

Katherine Dawson Varholak
(See above for address)
ATTORNEY TO BE NOTICED

Matthew O. Stromquist
(See above for address)

Ryan Joseph Klein
(See above for address)
ATTORNEY TO BE NOTICED

V.

Counter Defendant

Sun Construction Company, Inc.
a Colorado corporation
TERMINATED: 05/01/2009

represented by **Jeffrey C. Culbertson**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Robert Harold Miller
(See above for address)
ATTORNEY TO BE NOTICED

ThirdParty Plaintiff

St. Andrews/Alliance Joint Venture
a joint venture
TERMINATED: 03/06/2009

represented by **Scott Joseph Mikulecky**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Bret R. Gunnell
(See above for address)

Douglas M. Flinn
(See above for address)
TERMINATED: 03/31/2008

Katherine Dawson Varholak
(See above for address)
ATTORNEY TO BE NOTICED

Matthew O. Stromquist
(See above for address)

Ryan Joseph Klein

(See above for address)
ATTORNEY TO BE NOTICED

V.

ThirdParty Defendant

Earl F. Douglass Roofing Company
(Actually named as: Earl F. Douglass Roofing Co.) a Colorado corporation
TERMINATED: 03/06/2009

represented by **Joseph Andrew Ausmus**
Ausmus Law Firm P.C.
6020 Greenwood Plaza Blvd
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Email: rhw@rhwinterlaw.com
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Counter Defendant

Fidelity and Deposit Company of Maryland
a Maryland corporation

represented by **Patrick Quinn Hustead**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Vincent Joseph Wegher
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Connor Lee Cantrell
(See above for address)
ATTORNEY TO BE NOTICED

Michael Evan Sweet
(See above for address)
ATTORNEY TO BE NOTICED

ThirdParty Plaintiff

Torix General Contractors, LLC
a Colorado limited liability company
TERMINATED: 03/06/2009

represented by **Scott Joseph Mikulecky**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Bret R. Gunnell
(See above for address)

Douglas M. Flinn
(See above for address)
TERMINATED: 03/31/2008

Katherine Dawson Varholak
(See above for address)
ATTORNEY TO BE NOTICED

Matthew O. Stromquist
(See above for address)

Ryan Joseph Klein
(See above for address)
ATTORNEY TO BE NOTICED

ThirdParty Plaintiff

**Travelers Casualty and Surety Company
of America**
a Connecticut corporation
TERMINATED: 03/06/2009

represented by **Scott Joseph Mikulecky**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Bret R. Gunnell
(See above for address)

Douglas M. Flinn
(See above for address)
TERMINATED: 03/31/2008

Katherine Dawson Varholak
(See above for address)
ATTORNEY TO BE NOTICED

Matthew O. Stromquist
(See above for address)

Ryan Joseph Klein
(See above for address)
ATTORNEY TO BE NOTICED

Counter Claimant

Earl F. Douglass Roofing Company
*(Actually named as: Earl F. Douglass
Roofing Co.) a Colorado corporation*
TERMINATED: 05/01/2009

represented by **Joseph Andrew Ausmus**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Robert H. Winter
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

V.

Counter Defendant

St. Andrews/Alliance Joint Venture
a joint venture
TERMINATED: 05/01/2009

represented by **Scott Joseph Mikulecky**
(See above for address)
LEAD ATTORNEY
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Bret R. Gunnell
(See above for address)

Douglas M. Flinn
(See above for address)
TERMINATED: 03/31/2008

Katherine Dawson Varholak
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Matthew O. Stromquist
(See above for address)
ATTORNEY TO BE NOTICED

Ryan Joseph Klein
(See above for address)
ATTORNEY TO BE NOTICED

Counter Claimant

MLL Construction, Incorp.
a Colorado corporation
TERMINATED: 05/01/2009

represented by **Michael Evan Sweet**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Counter Claimant

Torix General Contractors, LLC
a Colorado limited liability company

represented by **Scott Joseph Mikulecky**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Bret R. Gunnell
(See above for address)

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TERMINATED: 03/31/2008

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(See above for address)

Ryan Joseph Klein
(See above for address)
ATTORNEY TO BE NOTICED

Counter Claimant

**Travelers Casualty and Surety Company
of America**
a Connecticut corporation

represented by **Scott Joseph Mikulecky**
(See above for address)
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Counter Claimant

St. Andrews/Alliance Joint Venture
a joint venture

represented by **Scott Joseph Mikulecky**
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Matthew O. Stromquist
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*ATTORNEY TO BE NOTICED***Ryan Joseph Klein**

(See above for address)

ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
06/27/2007	<u>1</u>	COMPLAINT against Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, St. Andrews/Alliance Joint Venture (Filing fee \$ 350, Receipt Number COX002326) Summons issued, filed by Sun Construction Company, Inc. (Attachments: # <u>1</u> Exh A# <u>2</u> Exh B# <u>3</u> Exh C# <u>4</u> Civil Cover Sheet # <u>5</u> Receipt)(llr,) (Entered: 06/28/2007)
07/12/2007	<u>2</u>	AMENDED COMPLAINT against all defendants, filed by Sun Construction Company, Inc..(Miller, Robert) (Entered: 07/12/2007)
10/01/2007	<u>3</u>	MOTION to Intervene <i>Pursuant to F.R.C.P. 24</i> by Interested Party Fidelity and Deposit Company of Maryland. (Attachments: # <u>1</u> Proposed Document Complaint and Petition for Declaration of Rights Against Defendants Torix General Contractors, LLC and St. Andrews/Alliance Joint Venture# <u>2</u> Proposed Document Corporate Disclosure Statement# <u>3</u> Proposed Order (PDF Only) Proposed Order re Motion to Intervene of Fidelity and Deposit Company of Maryland)(Hustead, Patrick) (Entered: 10/01/2007)
10/02/2007	<u>4</u>	MINUTE ORDER Plaintiff and Defendants have up to and including 10/22/07 to file a response re: <u>3</u> MOTION to Intervene Pursuant to F.R.C.P. 24 filed by Fidelity and Deposit Company of Maryland. Fidelity and Deposit Company has up to and including 11/1/07 to file a reply, by Judge Lewis T. Babcock on 10/2/07. (mrs) (Entered: 10/02/2007)
10/22/2007	<u>5</u>	DEMAND for Trial by Jury by Plaintiff Sun Construction Company, Inc.. (Miller, Robert) (Entered: 10/22/2007)
10/22/2007	<u>6</u>	RESPONSE to Motion re <u>3</u> MOTION to Intervene <i>Pursuant to F.R.C.P. 24</i> filed by Defendant St. Andrews/Alliance Joint Venture. (Klein, Ryan) (Entered: 10/22/2007)
10/22/2007	<u>7</u>	JOINDER re <u>6</u> Response to Motion <i>to Intervene Pursuant to F.R.C.P. 24</i> by Defendant Torix General Contractors, LLC. (Klein, Ryan) (Entered: 10/22/2007)
10/22/2007	<u>8</u>	JOINDER re <u>6</u> Response to Motion <i>to Intervene Pursuant to F.R.C.P. 24</i> by Defendant Travelers Casualty and Surety Company of America. (Klein, Ryan) (Entered: 10/22/2007)
10/25/2007	<u>9</u>	Unopposed MOTION For Extension of Time to <i>Serve Defendants</i> by Plaintiff Sun Construction Company, Inc.. (Miller, Robert) (Entered: 10/25/2007)
10/26/2007	<u>10</u>	MINUTE ORDER GRANTING Plaintiff Sun Construction, Inc.'s Unopposed <u>9</u> Motion for Extension of Time to Serve Defendants up to and including 12/1/07, by Judge Lewis T. Babcock on 10/26/07.(mrs) (Entered: 10/26/2007)
11/01/2007	<u>11</u>	REPLY to Response to Motion re <u>3</u> MOTION to Intervene <i>Pursuant to F.R.C.P. 24</i> filed by Interested Party Fidelity and Deposit Company of Maryland. (Hustead, Patrick) (Entered: 11/01/2007)
11/07/2007	<u>12</u>	CORPORATE DISCLOSURE STATEMENT by Defendant St. Andrews/Alliance Joint Venture.. (Klein, Ryan) (Entered: 11/07/2007)
11/07/2007	<u>13</u>	CORPORATE DISCLOSURE STATEMENT by Defendant Travelers Casualty and Surety Company of America.. (Klein, Ryan) (Entered: 11/07/2007)

11/07/2007	14	CORPORATE DISCLOSURE STATEMENT by Defendant Torix General Contractors, LLC.. (Klein, Ryan) (Entered: 11/07/2007)
11/15/2007	15	CORPORATE DISCLOSURE STATEMENT by Plaintiff Sun Construction Company, Inc... (Miller, Robert) (Entered: 11/15/2007)
11/26/2007	16	ORDER GRANTING Fidelity and Deposit Company of Maryland's 3 Motion to Intervene. The proposed Complaint and Corporate Disclosure Statement are accepted as filed. Signed by Judge Lewis T. Babcock on 11/26/07.(mrs) (Entered: 11/26/2007)
11/26/2007	17	INTERVENOR COMPLAINT against Torix General Contractors, LLC and St. Andrews/Alliance Joint Venture, filed by Fidelity and Deposit Company of Maryland. (mrs) (Entered: 11/26/2007)
11/26/2007	18	CORPORATE DISCLOSURE STATEMENT by Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (mrs) (Entered: 11/26/2007)
11/28/2007	19	SUMMONS Returned Executed by Sun Construction Company, Inc.. Travelers Casualty and Surety Company of America served on 11/16/2007, answer due 12/6/2007. (Miller, Robert) (Entered: 11/28/2007)
11/28/2007	20	SUMMONS Returned Executed by Sun Construction Company, Inc.. St. Andrews/Alliance Joint Venture served on 11/26/2007, answer due 12/17/2007. (Miller, Robert) (Entered: 11/28/2007)
11/28/2007	21	SUMMONS Returned Executed by Sun Construction Company, Inc.. Torix General Contractors, LLC served on 11/26/2007, answer due 12/17/2007. (Miller, Robert) (Entered: 11/28/2007)
12/06/2007	22	Unopposed MOTION for Extension of Time to File Answer <i>or Other Responsive Pleading</i> by Defendant Travelers Casualty and Surety Company of America. (Attachments: # 1 Proposed Order (PDF Only) Extending Time to Answer Until 1/14/08) (Klein, Ryan) (Entered: 12/06/2007)
12/07/2007	23	MINUTE ORDER GRANTING Defendant Travelers Casualty and Surety Company of America Unopposed 22 Motion for Extension of Time to Answer. Travelers Casualty and Surety Company of America answer due 1/14/2008, by Judge Lewis T. Babcock on 12/7/07.(mrs,) (Entered: 12/07/2007)
12/14/2007	24	AMENDED COMPLAINT <i>and Petition for Declaration of Rights against Defendants Torix General Contractors, LLC and St. Andrews/Alliance Joint Venture</i> against Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture, filed by Fidelity and Deposit Company of Maryland.(Wegher, Vincent) Modified on 12/19/2007 to correct filers (mrs,). (Entered: 12/14/2007)
12/19/2007	25	Docket Annotation re: 24 Amended Complaint, this docket entry modified to correct filers. Text only entry - no document attached (mrs,) (Entered: 12/19/2007)
12/26/2007	26	<i>Defendants'</i> ANSWER to 24 Amended Complaint, <i>and Petition for Declaration of Rights Against Defendants</i> by Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, St. Andrews/Alliance Joint Venture.(Flinn, Douglas) (Entered: 12/26/2007)
12/31/2007	27	ANSWER to 24 Amended Complaint, by Sun Construction Company, Inc..(Miller, Robert) (Entered: 12/31/2007)
01/11/2008	28	ORDER REFERRING CASE to Magistrate Judge Michael J. Watanabe. Signed by Judge Lewis T. Babcock on 1/11/08. (gmssl,) (Entered: 01/11/2008)

01/14/2008	29	<i>Defendants' ANSWER to 2 Amended Complaint by Plaintiff Sun Construction Company, Inc.</i> , COUNTERCLAIM against Sun Construction Company, Inc. by Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, St. Andrews/Alliance Joint Venture. (Attachments: # 1 Exhibit A)(Klein, Ryan) Modified on 1/15/2008 to correct linkage from Doc #2 to #24. (gms,). Modified on 1/15/2008 to return linkage to Doc #2 instead of 24 as #2 is the correct amended complaint being answered.(gms,). (Entered: 01/14/2008)
01/15/2008	30	Docket Annotation re: 29 Answer to Amended Complaint, Counterclaim. This docket entry was modified to correct linkage from Doc #2 to #24. Text only entry - no document attached (gms,) (Entered: 01/15/2008)
01/15/2008	31	Docket Annotation re: 29 Answer to Amended Complaint, Counterclaim. This docket entry was again modified to return linkage to Doc #2 instead of 24 as #2 is the correct amended complaint being answered. Text only entry - no document attached (gms,) (Entered: 01/15/2008)
01/22/2008	32	THIRD PARTY COMPLAINT against Earl F. Douglass Roofing Company, MLL Construction, Incorp., filed by St. Andrews/Alliance Joint Venture. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Klein, Ryan) (Entered: 01/22/2008)
01/25/2008	33	ORDER Setting Scheduling/Planning Conference: 28 Order of Reference to Magistrate Judge, a Scheduling Conference is set for 2/29/2008 09:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe, by Magistrate Judge Michael J. Watanabe on 1/25/2008. (sah,) (Entered: 01/25/2008)
02/04/2008	34	STIPULATION for Extension of Time to Respond to Defendants' Counterclaim by Plaintiff Sun Construction Company, Inc.. (Miller, Robert) (Entered: 02/04/2008)
02/05/2008	35	MINUTE ORDER GRANTING re: 34 Stipulation for Extension of Time filed by Sun Construction Company, Inc., Sun Construction Company, Inc. answer due 2/13/2008, by Judge Lewis T. Babcock on 02/05/2008. (sah2,) (Entered: 02/05/2008)
02/06/2008	36	STIPULATION Motion for Extension of Time to Comply with Court's Order to Meet and Confer Pursuant to F.R.C.P.26(f) by Plaintiff Sun Construction Company, Inc.. (Miller, Robert) (Entered: 02/06/2008)
02/06/2008	37	STIPULATION Motion for Continuance of Scheduling/Planning Conference by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order Regarding Stipulated Motion for Continuance of Scheduling/Planning Conference)(Miller, Robert) (Entered: 02/06/2008)
02/08/2008	38	MINUTE ORDER : Granting 36 Plaintiff's Stipulated Motion for Extension of Tim to Comply with Court's Order to Meet and Confer up to and including 2/11/08, Granting 37 Plaintiff's Stipulated Motion for Continuance of Scheduling/Planning Conference, The Scheduling Conference set for 2/29/2008 is VACATED and RESET for March 31, 2008 09:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe, by Magistrate Judge Michael J. Watanabe on 02/08/2008. (sah2,) Modified to correct Scheduling Conference date on 2/11/2008 (sah2,). (Entered: 02/08/2008)
02/08/2008	39	Utility Setting/Resetting Deadlines/Hearings: A Scheduling Conference is set for 3/31/2008 09:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Text only entry - no document attached. (sah2,) (Entered: 02/11/2008)
02/08/2008	40	Docket Annotation re: 38 Minute Order, entry modified to correct scheduling conference date. Text only entry - no document attached (sah2,) (Entered: 02/11/2008)

02/13/2008	41	SUMMONS Returned Executed by St. Andrews/Alliance Joint Venture. Earl F. Douglass Roofing Company((Actually named as: Earl F. Douglass Roofing Co.) a Colorado corporation) served on 2/5/2008, answer due 2/25/2008. (Flinn, Douglas) (Entered: 02/13/2008)
02/13/2008	42	ANSWER to 2 to Amended Complaint, Counterclaim, by Sun Construction Company, Inc..(Culbertson, Jeffrey) Modified on 2/14/2008 correct linkage (jjh,). (Entered: 02/13/2008)
02/13/2008	43	CERTIFICATE OF COMPLIANCE by Plaintiff Sun Construction Company, Inc.. (Culbertson, Jeffrey) (Entered: 02/13/2008)
02/14/2008	44	Docket Annotation re: 42 Answer to Counterclaim. Modified to correct linkage. Text only entry - no document attached (jjh,) (Entered: 02/14/2008)
02/29/2008	45	NOTICE of Entry of Appearance by <i>Robert H. Winter and</i> by Joseph Andrew Ausmus on behalf of Earl F. Douglass Roofing Company((Actually named as: Earl F. Douglass Roofing Co.) a Colorado corporation) (Ausmus, Joseph) (Entered: 02/29/2008)
02/29/2008	46	Unopposed MOTION For Extension of Time to <i>File Responsive Pleading</i> by ThirdParty Defendant Earl F. Douglass Roofing Company. (Ausmus, Joseph) (Entered: 02/29/2008)
02/29/2008	47	Proposed MOTION for Order to <i>Allow An Extensin Of Time To File A Responsive Pleading</i> by ThirdParty Defendant Earl F. Douglass Roofing Company. (Ausmus, Joseph) (Entered: 02/29/2008)
03/03/2008	48	Docket Annotation re: 47 Proposed MOTION for Order to Allow An Extensin Of Time To File A Responsive Pleading. Motion Terminated as document is a proposed Order not a motion. Text only entry - no document attached (jjh,) (Entered: 03/03/2008)
03/04/2008	49	MINUTE ORDER granting 46 Third-Party Defendant Earl F. Douglass Roofing, Co.s Unopposed Motion for Extension of Time to File a Responsive Pleading to Third Party Plaintiffs Complaint, Counterclaim and Crossclaim. Third-Party Defendant Earl F. Douglass Roofing, Co., has up to and including 3/20/2008 to file responsive pleading by Judge Lewis T. Babcock on 03/04/2008.(sah2,) (Entered: 03/04/2008)
03/20/2008	50	<i>THIRD PARTY DEFENDANT EARL F. DOUGLASS ROOFING, CO'S</i> ANSWER to 32 Third Party Complaint by Earl F. Douglass Roofing Company((Actually named as: Earl F. Douglass Roofing Co.) a Colorado corporation).(Ausmus, Joseph) (Entered: 03/20/2008)
03/25/2008	51	Proposed Scheduling Order by Counter Claimants Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, St. Andrews/Alliance Joint Venture, Counter Defendant Sun Construction Company, Inc., Third Party Defendants Earl F. Douglass Roofing Company, MLL Construction, Incorp., Earl F. Douglass Roofing Company, MLL Construction, Incorp., ThirdParty Plaintiff St. Andrews/Alliance Joint Venture, Intervenor Plaintiff Fidelity and Deposit Company of Maryland, Plaintiff Sun Construction Company, Inc., Defendants Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, St. Andrews/Alliance Joint Venture. (Culbertson, Jeffrey) (Entered: 03/25/2008)
03/30/2008	52	MOTION to Withdraw as Attorney <i>and to Substitute Counsel</i> by Defendants Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, St. Andrews/Alliance Joint Venture. (Flinn, Douglas) (Entered: 03/30/2008)
03/31/2008	53	MINUTE ORDER granting 52 Motion to Withdraw as Attorney. Added attorney Scott Joseph Mikulecky for Torix General Contractors, LLC, Travelers Casualty and Surety

		Company of America, St. Andrews/Alliance Joint Venture. Attorney Douglas M. Flinn terminated by Judge Lewis T. Babcock on 03/31/2008.(sah,) (Entered: 03/31/2008)
03/31/2008	54	Minute Entry/Minute Order for proceedings held before Magistrate Judge Michael J. Watanabe: Scheduling Conference held on 3/31/2008. Status Conference set for 5/7/2008 09:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Discovery due by 1/30/2009. Dispositive Motions due by 2/27/2009. Proposed Final Pretrial Order due by 4/22/2009. Final Pretrial Conference set for 4/27/2009 08:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Counsel shall make the changes of record and resubmit the scheduling order, dated nunc pro tunc March 31, 2008, on or before April 11, 2008. Parties are directed to www.cod.uscourts.gov and shall fully comply with the procedures of the judicial officer assigned to try this case on the merits. Any necessary motions for protective order shall be filed by April 11, 2008. (Court Reporter FTR - S. Moore.) (mjwcd,) (Entered: 03/31/2008)
04/03/2008	55	NOTICE of Entry of Appearance by Curtis R. Henry on behalf of Sun Construction Company, Inc. (Henry, Curtis) (Entered: 04/03/2008)
04/04/2008	56	WAIVER OF SERVICE Returned Executed by St. Andrews/Alliance Joint Venture. MLL Construction, Incorp.(a Colorado corporation) waiver sent on 4/2/2008, answer due 6/2/2008. (Klein, Ryan) (Entered: 04/04/2008)
04/11/2008	57	Proposed Scheduling Order by Plaintiff Sun Construction Company, Inc.. (Culbertson, Jeffrey) (Entered: 04/11/2008)
04/15/2008	58	SCHEDULING ORDER: Signed by Magistrate Judge Michael J. Watanabe on 4/14/2008, dated nunc pro tunc 3/31/2008. (mjwcd,) (Entered: 04/15/2008)
04/25/2008	59	MINUTE ORDER : This matter is set for trial to a jury for fifteen (15) days commencing 10/5/2009 at 9:00 a.m. in Courtroom C401, Byron G. Rogers United States Courthouse, 1929 Stout Street, Denver, Colorado. A trial preparation conference is set 9/11/2009 at 8:30 a.m. by Judge Lewis T. Babcock on 04/25/2008. (sah,) (Entered: 04/25/2008)
04/25/2008	60	DEPOSITION SCHEDULE <i>OF THE PARTIES</i> by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit)(Culbertson, Jeffrey) (Entered: 04/25/2008)
04/28/2008	61	Utility Setting/Resetting Deadlines/Hearings: Pursuant to Minute Order dated 4/25/2008, A Jury Trial is set for 10/5/2009 09:00 AM. A Trial Preparation Conference is set for 9/11/2009 at 08:30 AM in Courtroom C401 before Judge Lewis T. Babcock. Text only entry - no document attached. (sah,) (Entered: 04/28/2008)
05/01/2008	62	ANSWER to 32 Third Party Complaint by MLL Construction, Incorp..(Sweet, Michael) (Entered: 05/01/2008)
05/07/2008	63	Minute Entry/Minute Order for proceedings held before Magistrate Judge Michael J. Watanabe: Telephonic Status Conference held on 5/7/2008. Settlement Conference set for 2/17/2009 10:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Updated Confidential Settlement Statements due by 2/12/2009. (Court Reporter FTR - C. Coomes) (mehcd) (Entered: 05/07/2008)
06/25/2008	64	NOTICE of Entry of Appearance by Bret R. Gunnell on behalf of Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, St. Andrews/Alliance Joint Venture (Gunnell, Bret) (Entered: 06/25/2008)
10/17/2008	65	NOTICE of Change of Address <i>Notice of Change of Firm Name and Address</i> by Jeffrey C. Culbertson (Culbertson, Jeffrey) (Entered: 10/17/2008)
10/17/2008	66	MOTION for Leave to <i>to File Amended Answer and Third-Party Complaint</i> by Counter Claimant St. Andrews/Alliance Joint Venture, ThirdParty Plaintiff St. Andrews/Alliance

		Joint Venture, Defendant St. Andrews/Alliance Joint Venture. (Attachments: # 1 Exhibit 1 - JV's Amended Answer to Fidelity's Amended Complaint, # 2 Exhibit A - to Exhibit 1 JV's Amended Answer to Fidelity's Amended Complaint, # 3 Exhibit B to Exhibit 1 - JV's Amended Answer to Fidelity's Amended Complaint, # 4 Exhibit 2 - JV's Amended Third-Party Complaint)(Klein, Ryan) (Entered: 10/17/2008)
10/20/2008	67	SUPPLEMENTAL ORDER of Reference to United States Magistrate Judge: Conduct hearings, including evidentiary hearings, and submit proposed findings of fact and recommendations for rulings on motions, specifically 66 Defendant St. Andrews/Alliance Joint Ventures Motion for Leave to File Amended Answer and Third-Party Complaint. Signed by Judge Lewis T. Babcock on 10/20/2008. (sah,) (Entered: 10/20/2008)
10/20/2008	68	MEMORANDUM regarding 66 MOTION for Leave to to File Amended Answer and Third-Party Complaint filed by St. Andrews/Alliance Joint Venture.Motion referred to Magistrate Judge Michael J. Watanabe by Judge Lewis T. Babcock on 10/20/2008. (Text Only Entry - No Document Attached)(sah,) (Entered: 10/20/2008)
10/23/2008	69	Unopposed MOTION For Extension of Time <i>for the Parties to Serve Expert Disclosures</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Attachments: # 1 Proposed Order (PDF Only) granting Unopposed Motion for Extension of Time to Serve Expert Disclosures)(Wegher, Vincent) (Entered: 10/23/2008)
10/24/2008	70	MEMORANDUM regarding 69 Unopposed MOTION For Extension of Time for the Parties to Serve Expert Disclosures filed by Fidelity and Deposit Company of Maryland. Motion referred to Magistrate Judge Michael J. Watanabe by Judge Lewis T. Babcock on 10/24/2008. (Text Only Entry - No Document Attached)(sah,) (Entered: 10/24/2008)
10/31/2008	71	MINUTE ORDER granting 69 Fidelity and Deposit Company of Marylands Unopposed Motion for Extension of Time for the Parties to Serve Expert Disclosures. The Plaintiffs and Third-Party Plaintiffs shall serve their expert disclosures on or before 11/13/2008. The Defendants and Third-Party Defendants shall serve their expert rebuttal disclosures on or before 12/14/2008 by Magistrate Judge Michael J. Watanabe on 10/31/2008.(sah,) (Entered: 10/31/2008)
11/05/2008	72	RESPONSE to Motion re 66 MOTION for Leave to <i>to File Amended Answer and Third-Party Complaint</i> filed by Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit s A-C to Response to Motion for Leave to File Amended Answer, # 2 Exhibit s D-G to Response to Motion for Leave to File Amended Answer) (Wegher, Vincent) (Entered: 11/05/2008)
11/13/2008	73	Unopposed MOTION For Extension of Time <i>of Discovery Deadlines</i> by Defendants Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, St. Andrews/Alliance Joint Venture. (Klein, Ryan) (Entered: 11/13/2008)
11/14/2008	74	MEMORANDUM regarding 73 Unopposed MOTION For Extension of Time of Discovery Deadlines filed by Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture, Travelers Casualty and Surety Company of America. Motion referred to Magistrate Judge Michael J. Watanabe by Judge Lewis T. Babcock on 11/14/2008. (Text Only Entry - No Document Attached)(sah,) (Entered: 11/14/2008)

11/19/2008	75	MINUTE ORDER granting 66 Defendant St. Andrews/Alliance Joint Ventures Motion for Leave to File Amended Answer and Third-Party Complaint for those reasons as outlined in the subject motion. Defendants Amended Answer to Plaintiff Fidelity and Deposit Company of Marylands Amended Complaint and Petition for Declaration of Rights Against Defendants and Counterclaims (docket no. 66-2) and Defendants St Andrews/Alliance Joint Ventures Amended Third-Party Complaint (docket no. 66-5) are both accepted for filing as of this date of this minute order. Signed by Magistrate Judge Michael J. Watanabe on 11/19/2008.(sah,) (Entered: 11/19/2008)
11/19/2008	76	AMENDED ANSWER to 24 Amended Complaint, COUNTERCLAIM against Fidelity and Deposit Company of Maryland by Defendants Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, St. Andrews/Alliance Joint Venture, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (sah,) (Entered: 11/19/2008)
11/19/2008	77	THIRD PARTY COMPLAINT against MLL Construction, Incorp., Earl F. Douglass Roofing Company, filed by Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, St. Andrews/Alliance Joint Venture.(sah,) (Entered: 11/19/2008)
11/19/2008	78	MINUTE ORDER granting 73 Defendants Unopposed Motion for Extension of Discovery Deadlines by Magistrate Judge Michael J. Watanabe on 11/19/2008.(sah,) (Entered: 11/19/2008)
11/19/2008	79	Utility Setting/Resetting Deadlines/Hearings: Pursuant to the Minute Order dated 11/19/2008, Discovery due by 4/30/2009. Text only entry - no document attached. (sah,) (Entered: 11/20/2008)
11/26/2008	80	Unopposed MOTION For Extension of Time <i>to Answer Defendants' Counterclaims</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland, Counter Defendant Fidelity and Deposit Company of Maryland. (Attachments: # 1 Proposed Document Proposed Order granting Unopposed Motion for Extension of Time)(Wegher, Vincent) (Entered: 11/26/2008)
12/01/2008	81	MINUTE ORDER granting 80 Plaintiff Fidelity and Deposit Company of Marylands Unopposed Motion for Extension of Time to Answer Defendants Counterclaim. Plaintiff Fidelity and Deposit Company of Maryland has up to and including 12/17/2008 to file an answer to Defendant's Counterclaim by Judge Lewis T. Babcock on 12/01/2008.(sah,) (Entered: 12/01/2008)
12/03/2008	82	Unopposed MOTION For Extension of Time for Douglass Roofing to File an Answer to 77 Joint Venture's Amended Third-Party Complaint by ThirdParty Defendant Earl F. Douglass Roofing Company. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order to Motion for Extension of Time)(Ausmus, Joseph) Modified on 12/4/2008 to create linkage to the Third Party Complaint (sah,). (Entered: 12/03/2008)
12/03/2008	83	Unopposed MOTION For Extension of Time <i>to File a Responsive Pleading to Joint Venture's Amended Third Party Complaint</i> by Third Party Defendants MLL Construction, Incorp., MLL Construction, Incorp.. (Sweet, Michael) (Entered: 12/03/2008)
12/03/2008	84	Unopposed MOTION For Extension of Time <i>for MLL Construction to File a Responsive Pleading to Joint Venture's Amended Third Party Complaint</i> by Third Party Defendants MLL Construction, Incorp., MLL Construction, Incorp.. (Attachments: # 1 Proposed Order (PDF Only) Regarding Unopposed Motion for Extension of Time)(Sweet, Michael) (Entered: 12/03/2008)
12/04/2008	85	Docket Annotation re: 82 Unopposed MOTION For Extension of Time for Douglass Roofing to File an Answer to Joint Venture's Amended Third-Party Complaint. Entry

		modified on 12/4/2008 to create linkage to the Third Party Complaint. Text only entry - no document attached (sah,) (Entered: 12/04/2008)
12/04/2008	86	MINUTE ORDER granting 82 The Unopposed Motion for Extension of Time for Douglass Roofing to File an Answer to Joint Ventures Amended Third-Party Complaint; granting 84 Unopposed Motion for Extension of Time for MLL Construction to File a Responsive Pleading to Joint Ventures Amended Third Party Complaint. Douglass Roofing and MLL Construction have up to and including 12/10/2008 to file responsive pleadings by Judge Lewis T. Babcock on 12/04/2008.(sah,) (Entered: 12/04/2008)
12/04/2008	87	Utility Setting/Resetting Deadlines/Hearings: Pursuant to the Minute Order dated 12/04/2008, MLL Construction, Incorp.(a Colorado corporation) answer due 12/10/2008; Earl F. Douglass Roofing Company((Actually named as: Earl F. Douglass Roofing Co.) a Colorado corporation) answer due 12/10/2008. Text only entry - no document attached. (sah,) (Entered: 12/04/2008)
12/08/2008	88	MOTION For Extension of Time <i>to File a Responsive Pleading to Joint Venture's Counterclaim</i> by Counter Defendant Fidelity and Deposit Company of Maryland. (Attachments: # 1 Proposed Order (PDF Only))(Sweet, Michael) (Entered: 12/08/2008)
12/09/2008	89	MINUTE ORDER granting 88 The Unopposed Motion for Extension of Time for Fidelity and Deposit Company of Maryland to File a Responsive Pleading to Joint Ventures Counterclaim. Fidelity and Deposit Company of Maryland have up to and including 12/10/2008 to file a responsive pleading to Joint Venture's Counterclaim by Judge Lewis T. Babcock on 12/09/2008.(sah,) (Entered: 12/09/2008)
12/10/2008	90	<i>Third-Party Defendant Earl F. Douglass Roofing, Co's</i> ANSWER to 77 Third Party Complaint <i>and</i> , COUNTERCLAIM against St. Andrews/Alliance Joint Venture(a joint venture) by Earl F. Douglass Roofing Company((Actually named as: Earl F. Douglass Roofing Co.) a Colorado corporation).(Ausmus, Joseph) (Entered: 12/10/2008)
12/10/2008	91	<i>MLL Construction, Incorp.'s</i> ANSWER to 77 Third Party Complaint <i>of St. Andrews/Alliance Joint Venture</i> , COUNTERCLAIM against St. Andrews/Alliance Joint Venture(a joint venture) by MLL Construction, Incorp.(a Colorado corporation).(Sweet, Michael) (Entered: 12/10/2008)
12/17/2008	92	ANSWER to 76 Amended Answer to Complaint, Counterclaim,, by Fidelity and Deposit Company of Maryland.(Wegher, Vincent) (Entered: 12/17/2008)
12/29/2008	93	<i>Defendant and Third-Party Plaintiff St. Andrews/Alliance Joint Venture's</i> ANSWER to 90 Answer to Third Party Complaint, Counterclaim,, <i>to Earl F. Douglass Roofing's Counterclaim</i> by St. Andrews/Alliance Joint Venture(a joint venture).(Klein, Ryan) (Entered: 12/29/2008)
12/29/2008	94	Defendant Travelers Casualty and Surety Company of America's ANSWER to 90 Complaint, (90) Counterclaims of Earl F. Douglass Roofing by Travelers Casualty and Surety Company of America(a Connecticut corporation).(Klein, Ryan) Modified on 12/30/2008 to create linkage to the Counterclaim(sah2,). (Entered: 12/29/2008)
12/29/2008	95	<i>Defendant and Third-Party Plaintiff S. Andrews/Alliance Joint Venture's</i> ANSWER to 91 Answer to Third Party Complaint, Counterclaim,, <i>to MLL Construction's Counterclaim</i> by St. Andrews/Alliance Joint Venture(a joint venture).(Klein, Ryan) (Entered: 12/29/2008)
12/29/2008	96	<i>Defendant Travelers Casualty and Surety Company of America's</i> ANSWER to 91 Answer to Third Party Complaint, Counterclaim,, <i>to MLL Construction's Counterclaims</i> by Travelers Casualty and Surety Company of America(a Connecticut corporation).(Klein, Ryan) (Entered: 12/29/2008)

12/30/2008	97	Docket Annotation re: 94 Answer to Complaint,. Entry modified on 12/30/2008 to create linkage to the Counterclaim. Text only entry - no document attached (sah2,) (Entered: 12/30/2008)
01/29/2009	98	Unopposed MOTION For Extension of Time <i>to Comply with Expert Disclosure Deadline</i> by Plaintiff Sun Construction Company, Inc.. (Culbertson, Jeffrey) (Entered: 01/29/2009)
01/29/2009	99	MOTION for Order to <i>Order Regarding Unopposed Motion for Extension of Time to Comply with Expert Disclosure Deadline</i> by Plaintiff Sun Construction Company, Inc.. (Culbertson, Jeffrey) (Entered: 01/29/2009)
01/30/2009	100	MEMORANDUM regarding 98 Unopposed MOTION For Extension of Time <i>to Comply with Expert Disclosure Deadline</i> filed by Sun Construction Company, Inc..Motions referred to Magistrate Judge Michael J. Watanabe by Judge Lewis T. Babcock on 01/30/09. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(jjh,) (Entered: 01/30/2009)
01/30/2009	101	MINUTE ORDER granting 98 Plaintiffs Unopposed Motion for Extension of Time to Comply with Expert Disclosure Deadline. Defendant JV shall deliver to the Plaintiff, the daily job reports from October 2007 through August 2008, inclusive, on or before 02/09/2009 by Magistrate Judge Michael J. Watanabe on 01/30/2009.(sah,) (Entered: 02/02/2009)
02/10/2009	102	First MOTION for Leave to Appear <i>by Telephone</i> by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Proposed Order (PDF Only) Order regarding Motion for Leave to Appear by Telephone)(Culbertson, Jeffrey) (Entered: 02/10/2009)
02/11/2009	103	MEMORANDUM regarding 102 First MOTION for Leave to Appear by Telephone filed by Sun Construction Company, Inc..Motion referred to Magistrate Judge Michael J. Watanabe by Judge Lewis T. Babcock on 02/11/2009. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(sah,) (Entered: 02/11/2009)
02/13/2009	104	MINUTE ORDER denying 102 Plaintiff Suns Motion for Leave to Appear by Telephone. Counsel shall appear in person for the scheduling conference on 02/17/2009, at 10:00 a.m., (Mountain Time) by Magistrate Judge Michael J. Watanabe on 02/13/2009.(sah,) (Entered: 02/13/2009)
02/17/2009	105	Minute Entry for proceedings held before Magistrate Judge Michael J. Watanabe: Settlement Conference held on 2/17/2009. No settlement was reached. (sah,) (Entered: 02/17/2009)
02/25/2009	106	Unopposed MOTION For Extension of Time <i>for the Parties to File Dispositive Motions and Conduct Fact Discovery</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland, Counter Defendant Fidelity and Deposit Company of Maryland. (Attachments: # 1 Proposed Order (PDF Only))(Wegher, Vincent) (Entered: 02/25/2009)
02/26/2009	107	MEMORANDUM regarding 106 Unopposed MOTION For Extension of Time for the Parties to File Dispositive Motions and Conduct Fact Discovery filed by Fidelity and Deposit Company of Maryland.Motion referred to Magistrate Judge Michael J. Watanabe by Judge Lewis T. Babcock on 02/26/2009. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(sah,) (Entered: 02/26/2009)
02/26/2009	108	ORDER granting 106 Unopposed Motion for Extension of Time For The Parties To File Dispositive Motions and Conduct Fact Discovery. Discovery due by 5/29/2009. Dispositive Motions due by 6/29/2009 by Magistrate Judge Michael J. Watanabe on 02/26/2009.(sah,) (Entered: 02/26/2009)

03/05/2009	109	Stipulated MOTION for Order to <i>Acceptance of Arbitration Agreement and for Order Administratively Dismissing Third Party Claims</i> by ThirdParty Defendant Earl F. Douglass Roofing Company. (Attachments: # 1 Exhibit)(Ausmus, Joseph) (Entered: 03/05/2009)
03/06/2009	110	ORDER. The third party claims are DISMISSED and pursuant to the agreement between Third Party Plaintiff and Third Party Defendants these issues shall be submitted to binding arbitration by Judge Lewis T. Babcock on 03/06/2009. (sah,) (Entered: 03/06/2009)
03/20/2009	111	NOTICE of <i>Double Trial Setting</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland, Counter Defendant Fidelity and Deposit Company of Maryland (Wegher, Vincent) (Entered: 03/20/2009)
03/27/2009	112	Unopposed MOTION For Extension of Time To <i>File Expert Rebuttal Disclosures</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland, Counter Defendant Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Proposed Order (PDF Only))(Wegher, Vincent) (Entered: 03/27/2009)
03/30/2009	113	MEMORANDUM regarding 112 Unopposed MOTION For Extension of Time To File Expert Rebuttal Disclosures filed by Fidelity and Deposit Company of Maryland.Motion referred to Magistrate Judge Michael J. Watanabe by Judge Lewis T. Babcock on 03/30/2009. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(sah,) (Entered: 03/30/2009)
03/30/2009	114	ORDER granting 112 Unopposed Motion for Extension of Time For Fidelity and Deposit Company of Maryland to File Its Expert Rebuttal Disclosures. Fidelity and Deposit shall have up to and including 04/30/2009 to file its expert rebuttal disclosures. The Final Pretrial Conference set for 04/27/2009 is VACATED and reset to 8/11/2009 09:00 AM before Magistrate Judge Michael J. Watanabe. Parties shall file their proposed final pretrail order five (5) days before the Final Pretrial Conference by Magistrate Judge Michael J. Watanabe on 03/30/2009.(sah,) (Entered: 03/31/2009)
04/22/2009	115	MOTION for Leave to Amend 76 Amended Complaint by Plaintiff Sun Construction Company, Inc. (Attachments: # 1 Exhibit Second Amended Complaint)(Culbertson, Jeffrey) Modified on 4/23/2009 to create linkage to the Amended Complaint(sah,). (Entered: 04/22/2009)
04/23/2009	116	MINUTE ORDER. Defendants have up to and including 05/07/2009 to respond to the Motion to Amend Amended Complaint 115 by Judge Lewis T. Babcock on 04/23/2009. (sah,) (Entered: 04/23/2009)
04/30/2009	117	NOTICE of <i>Unopposed Motion</i> by Plaintiff Sun Construction Company, Inc. (Culbertson, Jeffrey) (Entered: 04/30/2009)
04/30/2009	118	STIPULATION re 117 Notice (Other)Motion to Extend Time to Conduct Fact Discovery by Plaintiff Sun Construction Company, Inc..(Pursuant to Chambers, event was changed into a Motion for Extension of Time). (Culbertson, Jeffrey) Modified on 5/1/2009 changed event into a motion (sah,). (Entered: 04/30/2009)
04/30/2009	123	MINUTE ORDER. Sun Construction, Inc.'s 117 Unopposed Motion to Extend Time To Conduct Fact Discovery is GRANTED. Discovery is extended to 06/30/2009 and dispositive motions are extended to 07/30/2009 by Magistrate Judge Michael J. Watanabe on 04/30/2009. (sah,) (Entered: 05/04/2009)
05/01/2009	119	Docket Annotation re: 118 MOTION for Extension of Time. Pursuant to Chambers, event was changed into a motion. Text only entry - no document attached (sah,) (Entered: 05/01/2009)

05/01/2009	120	MEMORANDUM regarding 118 MOTION for Extension of Time filed by Sun Construction Company, Inc. Motion referred to Magistrate Judge Michael J. Watanabe by Judge Lewis T. Babcock on 05/01/2009. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(sah,) (Entered: 05/01/2009)
05/01/2009	121	MINUTE ORDER granting 115 Plaintiffs Motion to Amend Amended Complaint by Judge Lewis T. Babcock on 05/01/2009.(sah,) (Entered: 05/01/2009)
05/01/2009	122	SECOND AMENDED COMPLAINT against Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, St. Andrews/Alliance Joint Venture, filed by Sun Construction Company, Inc..(sah,) (Entered: 05/01/2009)
05/08/2009	124	NOTICE of Entry of Appearance by Matthew O. Stromquist on behalf of all defendants (Stromquist, Matthew) (Entered: 05/08/2009)
05/19/2009	125	<i>Defendants'</i> ANSWER to 122 Amended Complaint <i>and</i> , COUNTERCLAIM against Sun Construction Company, Inc. by Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, St. Andrews/Alliance Joint Venture. (Attachments: # 1 Exhibit A)(Stromquist, Matthew) (Entered: 05/19/2009)
05/28/2009	126	<i>Plaintiff's Reply to Defendant's Counterclaims filed on May 19, 2009</i> ANSWER/REPLY to 125 Answer to Amended Complaint,, Counterclaim, by Sun Construction Company, Inc..(Culbertson, Jeffrey) (Entered: 05/28/2009)
07/27/2009	127	Stipulated MOTION to Continue <i>Deadlines</i> by Plaintiff Sun Construction Company, Inc.. (Culbertson, Jeffrey) (Entered: 07/27/2009)
07/28/2009	128	MEMORANDUM regarding 127 Stipulated MOTION to Continue Deadlines filed by Sun Construction Company, Inc..Motion referred to Magistrate Judge Michael J. Watanabe. By Judge Lewis T. Babcock on 07/28/2009. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(sah,) (Entered: 07/28/2009)
07/30/2009	129	Second MOTION for Extension of Time to <i>FOR THE PARTIES TO FILE DISPOSITIVE MOTIONS</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland, Counter Defendant Fidelity and Deposit Company of Maryland. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order)(Wegher, Vincent) (Entered: 07/30/2009)
07/31/2009	130	MEMORANDUM regarding 129 Second MOTION for Extension of Time to FOR THE PARTIES TO FILE DISPOSITIVE MOTIONS filed by Fidelity and Deposit Company of Maryland. Motion referred to Magistrate Judge Michael J. Watanabe. By Judge Lewis T. Babcock on 07/31/2009. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(sah,) (Entered: 07/31/2009)
07/31/2009	131	MINUTE ORDER. The trial preparation conference set 09/11/2009 and the trial date of 10/05/2009 are VACATED to be reset after ruling on dispositive motions and the entry of a pretrial order. By Judge Lewis T. Babcock on 07/31/2009. (sah,) (Entered: 07/31/2009)
07/31/2009	132	ORDER granting 129 Unopposed Motion for Extension of Time For The Parties To File Dispositive Motions. The deadline for the parties to file dispositive motions is 08/28/2009.By Magistrate Judge Michael J. Watanabe on 07/31/2009.(sah,) (Entered: 07/31/2009)
07/31/2009	133	ORDER granting 127 Stipulated Motion to Continue Deadlines. Proposed Pretrial Order due by 9/9/2009. Final Pretrial Conference set for 9/14/2009 08:00 AM. By Magistrate Judge Michael J. Watanabe on 07/31/2009.(sah,) (Entered: 07/31/2009)
08/27/2009	134	MOTION for Partial Summary Judgment as to Its Claim for Breach of Contract Due to Cardinal Change and Material Modification and Its Claim for Declaration of Right by Intervenor Plaintiff Fidelity and Deposit Company of Maryland, Counter Defendant

		Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6, # 7 Exhibit 7, # 8 Exhibit 8, # 9 Exhibit 9, # 10 Exhibit 10)(Wegher, Vincent) Modified on 8/28/2009 to remove repetitive(sah2,). (Entered: 08/27/2009)
08/28/2009	135	MOTION for Summary Judgment by Defendants Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2)(Gunnell, Bret) (Entered: 08/28/2009)
09/09/2009	136	Proposed Pretrial Order by Plaintiff Sun Construction Company, Inc.. (Culbertson, Jeffrey) (Entered: 09/09/2009)
09/14/2009	137	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Michael J. Watanabe: Final Pretrial Conference held on 9/14/2009. Final Pretrial Order entered. (Court Reporter FTR - Ellen E. Miller) (mjwcd) (Entered: 09/14/2009)
09/14/2009	138	FINAL PRETRIAL ORDER entered by Magistrate Judge Michael J. Watanabe on 09/14/2009. (mjwcd) (Entered: 09/14/2009)
09/16/2009	139	BRIEF in Opposition to 134 MOTION for Partial Summary Judgment <i>as to Its Claim for Breach of Contract Due to Cardinal Change and Material Modification and Its Claim for Declaration of Rights</i> filed by Defendant St. Andrews/Alliance Joint Venture. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6, # 7 Exhibit 7, # 8 Exhibit 8, # 9 Exhibit 9, # 10 Exhibit 10)(Gunnell, Bret) (Entered: 09/16/2009)
09/17/2009	140	RESPONSE to 135 MOTION for Summary Judgment filed by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B)(Culbertson, Jeffrey) (Entered: 09/17/2009)
09/28/2009	141	Unopposed MOTION for Extension of Time to File Response/Reply as to 134 MOTION for Partial Summary Judgment <i>as to Its Claim for Breach of Contract Due to Cardinal Change and Material Modification and Its Claim for Declaration of Rights</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland, Counter Defendant Fidelity and Deposit Company of Maryland. (Attachments: # 1 Proposed Order (PDF Only) granting Motion for Extension of Time to File Reply to Response to Motion for Summary Judgment)(Wegher, Vincent) (Entered: 09/28/2009)
09/29/2009	142	Unopposed MOTION for Extension of Time to File Response/Reply as to 135 MOTION for Summary Judgment by Defendants Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture. (Stromquist, Matthew) (Entered: 09/29/2009)
09/29/2009	143	MINUTE ORDER. Plaintiffs Unopposed Motion for Extension of Time to File Its Reply Brief in Support of Its Motion for Partial Summary Judgment as to its Claim for Breach of Contract Due to Cardinal Change and Material Modification and Its Claim for Declaration of Rights 141 is GRANTED up to and including October 8, 2009, by Judge Lewis T. Babcock on 09/29/09.(ltbcd,) (Entered: 09/29/2009)
09/30/2009	144	MINUTE ORDER. Defendants Unopposed Motion for Extension of Time to File Their Reply Brief in Support of Their Motion for Summary Judgment as to Sun Construction Company, Inc.s Claim for Lost Profits 142 is GRANTED up to and including October 9, 2009. by Judge Lewis T. Babcock on 09/30/09.(ltbcd,) (Entered: 09/30/2009)
10/08/2009	145	REPLY to Response to 134 MOTION for Partial Summary Judgment <i>as to Its Claim for Breach of Contract Due to Cardinal Change and Material Modification and Its Claim for Declaration of Rights</i> filed by Intervenor Plaintiff Fidelity and Deposit Company of Maryland, Counter Defendant Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit A to Reply, # 2 Exhibit B to Reply, # 3 Exhibit C to Reply, # 4 Exhibit D to

		Reply, # 5 Exhibit E to Reply, # 6 Deposition Excerpts F to Reply)(Wegher, Vincent) (Entered: 10/08/2009)
10/09/2009	146	REPLY to Response to 135 MOTION for Summary Judgment filed by Defendants Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5)(Stromquist, Matthew) (Entered: 10/09/2009)
10/15/2009	147	ORDER denying 134 Fidelity and Deposit Company of Marylands Motion for Partial Summary Judgment as to its Claim for Breach of Contract Due to Cardinal Change and Material Modification and its Claim for Declaration of Rights. By Judge Lewis T. Babcock on 10/15/2009.(sah,) (Entered: 10/15/2009)
10/20/2009	148	ORDER. Defendants Motion for Summary Judgment on Plaintiffs Fourth Claim for Relief 135 is GRANTED. Plaintiffs Fourth Claim for Relief is DISMISSED. By Judge Lewis T. Babcock on 10/20/2009.(sah,) (Entered: 10/20/2009)
11/06/2009	149	MINUTE ORDER. A Status/Scheduling hearing is set for 11/19/2009 09:30 AM in Courtroom C401. By Judge Lewis T. Babcock on 11/06/2009. (sah,) (Entered: 11/06/2009)
11/19/2009	150	Minute Entry for proceedings the Status/Scheduling Conference held before Judge Lewis T. Babcock: ORDERED:A Jury Trial is set for three weeks commencing Monday, October 18, 2010, to be held in Courtroom C401 before Judge Lewis T. Babcock. ORDERED:A preliminary final trial preparation conference is set Thursday, August 19, 2010 at 9:00 a.m., to be held in Courtroom C401 before Judge Lewis T. Babcock. ORDERED:A final trial preparation conference is set Friday, September 24, 2010 at 9:00 a.m., to be held in Courtroom C401 before Judge Lewis T. Babcock. ORDERED:A further status hearing is set Thursday, March 25, 2010 at 9:00 am., to be held in Courtroom C401 before Judge Lewis T. Babcock. For this hearing counsel shall bring one set of Jury Instructions, a hard copy. The plaintiffs language shall be set out in caps and defendants language shall be set out in brackets, and the bonding companys language shall be set out in italics. The Jury Instructions shall include a statement of the case, claims of the parties, a substantive Instruction and damages Instruction no stock Instructions -- and a verdict form. (Court Reporter Adrienne Whitlow.) (ltbcd,) Modified on 11/20/2009 to add the type of hearing/conference held (sah,). (Entered: 11/19/2009)
11/19/2009	151	Utility Setting/Resetting Deadlines/Hearings: Pursuant to the Minute Entry dated 11/19/2009: Preliminary Pretrial Conference set for 8/19/2010 09:00 AM before Judge Lewis T. Babcock. Final Pretrial Conference set for 9/24/2010 09:00 AM before Judge Lewis T. Babcock. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (sah,) (Entered: 11/20/2009)
11/20/2009	152	Docket Annotation re: 150 Status Conference,. Set/Reset Hearings. Entry modified on 11/20/2009 to add the type of hearing/conference held. Text only entry - no document attached (sah,) (Entered: 11/20/2009)
12/31/2009	153	MOTION to Amend/Correct/Modify 58 Scheduling Order by Intervenor Plaintiff Fidelity and Deposit Company of Maryland, Counter Defendant Fidelity and Deposit Company of Maryland. (Attachments: # 1 Proposed Order (PDF Only) Proposed Amended Scheduling Order)(Hustead, Patrick) (Entered: 12/31/2009)
01/04/2010	154	MEMORANDUM regarding 153 MOTION to Modify 58 Scheduling Order. Motion referred to Magistrate Judge Michael J. Watanabe by Judge Lewis T. Babcock on 01/04/2010. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(ltbcd,) (Entered: 01/04/2010)

01/25/2010	155	RESPONSE to 153 MOTION to Amend/Correct/Modify 58 Scheduling Order MOTION to Amend/Correct/Modify 58 Scheduling Order filed by Defendants Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture. (Stromquist, Matthew) (Entered: 01/25/2010)
01/27/2010	156	MINUTE ORDER Setting Hearing on Motion 153 Plaintiff's Motion to Modify 58 Scheduling Order. Motion Hearing set for 2/8/2010 09:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe, by Magistrate Judge Michael J. Watanabe on 1/27/2010. (mjwcd) (Entered: 01/27/2010)
02/02/2010	157	Unopposed MOTION for Leave to Appear <i>by Phone at the Hearing scheduled for February 8, 2010</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland, Counter Defendant Fidelity and Deposit Company of Maryland. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order)(Wegher, Vincent) (Entered: 02/02/2010)
02/03/2010	158	MEMORANDUM regarding 157 Unopposed MOTION for Leave to Appear by Phone at the Hearing scheduled for February 8, 2010, filed by Fidelity and Deposit Company of Maryland. Motion referred to Magistrate Judge Michael J. Watanabe by Judge Lewis T. Babcock on 02/03/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(ltbcd,) (Entered: 02/03/2010)
02/03/2010	159	ORDER Granting 157 Plaintiff Fidelity and Deposit Company of Maryland's Unopposed Motion to Allow Patrick Q. Hustead to Participate in the Hearing Scheduled for February 8, 2010 at 9:00 a.m. by Telephone. Patrick Q. Hustead shall call (303) 844-2403 for the Motion Hearing 2/8/2010 09:00 AM; Vincent J. Wegher shall appear in person, by Magistrate Judge Michael J. Watanabe on 2/3/2010.(mjwcd) (Entered: 02/03/2010)
02/04/2010	160	Unopposed MOTION for Leave to Appear <i>by Telephone</i> by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC. (Attachments: # 1 Proposed Order (PDF Only) Regarding Motion to Appear by Telephone)(Gunnell, Bret) Modified on 2/5/2010 to add Torix General Contractors, LLC as a filer (ebs,). (Entered: 02/04/2010)
02/04/2010	161	ORDER granting 160 Unopposed Motion to Allow Bret R. Gunnell to Participate in Hearing for 2/8/10 by Telephone, by Magistrate Judge Michael J. Watanabe on 2/4/10. (gmssl,) (Entered: 02/04/2010)
02/05/2010	162	Docket Annotation re: 160 Unopposed MOTION for Leave to Appear <i>by Telephone</i> . This docket entry was modified to add Torix General Contractors, LLC as a filer. Text only entry - no document attached (ebs,) (Entered: 02/05/2010)
02/05/2010	163	NOTICE of Entry of Appearance by Connor Lee Cantrell on behalf of Fidelity and Deposit Company of Maryland (Cantrell, Connor) (Entered: 02/05/2010)
02/08/2010	164	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Michael J. Watanabe: Motion Hearing held on 2/8/2010. Granting 153 Fidelity and Deposit Company of Maryland's Motion to Modify Scheduling Order. Discovery due by 7/30/2010. Dispositive Motions due by 7/26/2010. Final Pretrial Conference is set for 09/24/2010 at 09:00 AM. Preliminary Final Trial Preparation Conference is set for 08/19/2010 at 09:00 AM. Final Trial Preparation Conference is set for 09/24/2010 at 09:00 AM. Trial to Jury is set for 10/18/2010 at 09:00 AM (Court Reporter FTR - Ellen E. Miller) (mjwcd) Modified on 2/11/2010 to include language regarding the rest of the minutes. (sah,). (Entered: 02/10/2010)
02/08/2010	165	AMENDED SCHEDULING ORDER: Entered by Magistrate Judge Michael J. Watanabe on 2/8/2010. (mjwcd) Modified on 2/10/2010 to indicate that the scheduling order has been amended (sah,). (Entered: 02/10/2010)

02/10/2010	166	Docket Annotation re: 165 Scheduling Order. Entry modified on 2/10/2010 to indicate that the scheduling order has been amended. Text only entry - no document attached (sah,) (Entered: 02/10/2010)
02/11/2010	167	Docket Annotation re: 164 Order on Motion to Amend/Correct/Modify, Motion Hearing, Set/Reset Deadlines. Entry modified on 2/11/2010 to include language regarding the rest of the minutes. Text only entry - no document attached (sah,) (Entered: 02/11/2010)
02/16/2010	168	Unopposed MOTION for Extension of Time to <i>Serve Supplemental Rule 26(a)(2) Expert Report</i> by Defendants Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture. (Attachments: # 1 Proposed Order (PDF Only))(Stromquist, Matthew) (Entered: 02/16/2010)
02/17/2010	169	MEMORANDUM regarding 168 Unopposed Motion for Extension of Time to Serve Supplemental Rule 26(a)(2) Expert Report, filed by Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture. Motion referred to Magistrate Judge Michael J. Watanabe, by Judge Lewis T. Babcock on 02/17/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(ltbcd,) (Entered: 02/17/2010)
02/18/2010	170	ORDER granting 168 Defendants' Unopposed Motion for Extension of Time for Defendants to Serve Their Supplemental Rule 26(a)(2) Expert Report. Deadline for defendants to supplement their prior expert report is 2/22/2010; deadline for plaintiffs to submit rebuttal expert reports is 4/22/2010, by Magistrate Judge Michael J. Watanabe on 2/18/2010.(mjwcd) (Entered: 02/18/2010)
03/19/2010	171	MOTION for Leave to Appear <i>By Telephone</i> by Defendant St. Andrews/Alliance Joint Venture. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order)(Gunnell, Bret) (Entered: 03/19/2010)
03/19/2010	172	MOTION for Leave to Appear <i>by Telephone</i> by Defendant St. Andrews/Alliance Joint Venture. (Attachments: # 1 Proposed Order (PDF Only) Appear by Telephone)(Gunnell, Bret) (Entered: 03/19/2010)
03/19/2010	173	ORDER granting 171 Defendants unopposed Motion to allow Bret R. Gunnell to appear at the Status Conference scheduled for 03/25/2010 at 9:00 a.m. via telephone. By Judge Lewis T. Babcock on 03/19/2010.(sah,) (Entered: 03/22/2010)
03/25/2010	174	Minute Entry - Courtroom Minutes for Status Conference held before Judge Lewis T. Babcock on 3/25/2010. ORDERED: A joint stipulated motion to amend the case caption shall be filed by 4/08/2010. By 8/13/2010, counsel shall submit a revised set of proposed jury instructions. Witness lists (including anticipated time of testimony) and exhibit lists shall be submitted by 8/13/2010. Counsel shall use the Court's exhibit list form and indicate on the form which exhibits are stipulated. For each exhibit which is not stipulated, counsel shall cite the rule of exclusion relied upon for the objection. Clients shall be present at the hearing on 8/19/2010. (Court Reporter Gwen Daniel) (lbush) (Entered: 03/25/2010)
03/25/2010	175	MINUTE ORDER. The parties shall file a joint stipulated motion to amend the case caption, on or before April 8, 2010. By August 13, 2010, counsel shall submit the following: a revised set of proposed jury instructions; witness lists (including anticipated time of testimony); and exhibit lists (including which exhibits are stipulated). For each exhibit which is not stipulated, counsel shall cite the rule of exclusion relied upon for the objection. Clients shall be present at the hearing on August 19, 2010, by Judge Lewis T. Babcock on 3/25/10. (ltbcd,) Modified on 3/26/2010 to correct the date filed (sah,). (Entered: 03/26/2010)
03/26/2010	176	Docket Annotation re: 175 Minute Order. Entry modified on 3/26/2010 to correct the date filed. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (sah,) (Entered: 03/26/2010)

		03/26/2010)
04/07/2010	177	Joint MOTION to Amend/Correct/Modify <i>Case Caption</i> by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order Regarding Joint Stipulated Motion to Amend Case Caption)(Culbertson, Jeffrey) (Entered: 04/07/2010)
04/08/2010	178	MINUTE ORDER. The Joint Stipulated Motion to Amend Case Caption 177 is GRANTED and the case caption is amended to reflect the caption depicted above, by Judge Lewis T. Babcock on 4/8/10.(ltbcd,) (Entered: 04/08/2010)
08/13/2010	179	Witness List (<i>Preliminary</i>) by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC. (Stromquist, Matthew) (Entered: 08/13/2010)
08/13/2010	180	Proposed Jury Instructions (<i>Non-Stipulated</i>) by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC. (Stromquist, Matthew) (Entered: 08/13/2010)
08/13/2010	181	Exhibit List (<i>Preliminary</i>) by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC. (Attachments: # 1 Exhibit A)(Stromquist, Matthew) (Entered: 08/13/2010)
08/13/2010	182	STIPULATION for Extension of Time by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Cantrell, Connor) (Entered: 08/13/2010)
08/13/2010	183	Proposed Jury Instructions by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Wegher, Vincent) (Entered: 08/13/2010)
08/13/2010	184	Witness List <i>and Exhibit List</i> by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Cantrell, Connor) (Entered: 08/13/2010)
08/13/2010	185	Stipulated MOTION for Extension of Time to <i>to Submit Final Exhibit Lists and Objections to Exhibit Lists</i> by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Cantrell, Connor) (Entered: 08/13/2010)
08/13/2010	186	Proposed Jury Instructions by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Cantrell, Connor) (Entered: 08/13/2010)
08/13/2010	187	Witness List (<i>Preliminary</i>) by Plaintiff Sun Construction Company, Inc.. (Culbertson, Jeffrey) (Entered: 08/13/2010)
08/13/2010	188	Exhibit List (<i>Preliminary</i>) by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit Exhibit A)(Culbertson, Jeffrey) (Entered: 08/13/2010)
08/13/2010	189	Proposed Jury Instructions by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B)(Culbertson, Jeffrey) (Entered: 08/13/2010)
08/16/2010	190	Docket Annotation re: 183 Proposed Jury Instructions. Document contains incorrect proposed jury instructions. Counsel has refiled proposed instructions document number #186. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (sah2,) (Entered: 08/16/2010)
08/16/2010	191	Proposed Jury Instructions <i>Revised</i> by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B)(Culbertson, Jeffrey) (Entered: 08/16/2010)

08/19/2010	192	Minute Entry for proceedings held before Judge Lewis T. Babcock: Preliminary Trial Preparation Conference held August 19, 2010. ORDERED:The parties shall submit jury instructions which are a logical set of statements of the rules of law that apply to the claims and counterclaims in the case, with any disputed language by the plaintiffs in caps, disputed language by the bonding company in italics, and disputed language by the defendant in brackets. The parties shall submit in their instructions a statement of the case instruction.ORDERED:The parties shall submit a verdict form with answers to special interrogatories. ORDERED:The parties shall prepare one set of joint exhibits, and a separate set of each party's exhibits, with stipulations.The parties shall submit a stipulated glossary of terms.ORDERED:The Stipulated Motion for Extension of Time to Submit Final Exhibit Lists and Objections to Exhibit Lists (Doc No. 185) is GRANTED.ORDERED:The jury trial set October 18, 2010 is VACATED AND RESET TO Monday, November 1, 2010.ORDERED:The Final Trial Preparation Conference set September 24, 2010 is VACATED AND RESET to Friday, October 1, 2010 at 9:00 a.m. in Courtroom C401 before Judge Lewis T. Babcock. (Court Reporter Gwen Daniel) (ltbcd,) (Entered: 08/19/2010)
08/23/2010	193	MINUTE ORDER To clarify the record, a Final Pretrial Conference is set pursuant to the Scheduling Order 164 for 9/24/2010 09:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Pursuant to the Order entered by Judge Lewis T. Babcock 192 a Final Trial Preparation Conference is set 10/1/2010 09:00 AM before Judge Babcock. By Magistrate Judge Michael J. Watanabe on 8/23/2010. (mjwcd) (Entered: 08/23/2010)
08/23/2010	194	AMENDED MINUTE ORDER To clarify the record, a Final Pretrial Conference is set pursuant to the Scheduling Order 165 before Magistrate Judge Michael J. Watanabe on 9/24/2010 at 09:00 AM in Courtroom A-502, Fifth floor, Alfred A. Arraj United States Courthouse, 901 19th Street, Denver, Colorado 80294. Pursuant to the Order entered by Judge Lewis T. Babcock 192 a Final Trial Preparation Conference is set 10/1/2010 at 09:00 AM before Judge Babcock.By Magistrate Judge Michael J. Watanabe (mjwcd) (Entered: 08/23/2010)
08/24/2010	195	MINUTE ORDER Due to a scheduling conflict, the Final Pretrial Conference 9/24/2010 at 09:00 AM before Magistrate Judge Watanabe is vacated. Final Pretrial Conference reset for 9/28/2010 10:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Proposed Pretrial Order due by 9/22/2010. By Magistrate Judge Michael J. Watanabe on 8/24/2010. (mjwcd) (Entered: 08/25/2010)
09/22/2010	196	Proposed Pretrial Order by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit Exhibit A-1, # 2 Exhibit Exhibit A-2, # 3 Exhibit Exhibit A-3, # 4 Exhibit Exhibit B-1, # 5 Exhibit Exhibit B-2, # 6 Exhibit Exhibit B-3)(Culbertson, Jeffrey) (Entered: 09/22/2010)
09/23/2010	197	Proposed Pretrial Order by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit A-1, # 2 Exhibit A-2, # 3 Exhibit A-3, # 4 Exhibit B-1, # 5 Exhibit B-2, # 6 Exhibit B-3)(Culbertson, Jeffrey) Modified on 9/23/2010 to remove repetitive text (sah,). (Entered: 09/23/2010)
09/23/2010	198	Docket Annotation re: 196 Proposed Pretrial Order.Counsel refiled document pursuant to request from chambers to correct the title of the Proposed Pretrial Order. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (sah,) (Entered: 09/23/2010)
09/28/2010	199	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Michael J. Watanabe: Final Pretrial Conference held on 9/28/2010. Final Pretrial Order entered. (Court Reporter FTR - Ellen E. Miller) (mjwcd) (Entered: 09/28/2010)

09/28/2010	200	FINAL PRETRIAL ORDER entered by Magistrate Judge Michael J. Watanabe on 9/28/2010. (mjwcd) (Additional attachment(s) added on 9/29/2010: # 1 Exhibit A-1, # 2 Exhibit A-2, # 3 Exhibit A-3, # 4 Exhibit B-1, # 5 Exhibit B-2, # 6 Exhibit B-3) (sah,). Modified on 9/29/2010 to add documents to filing (sah,). (Entered: 09/28/2010)
09/29/2010	201	Docket Annotation re: 200 Pretrial Order. Entry modified on 9/29/2010 to add documents to filing. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (sah,) (Entered: 09/29/2010)
09/29/2010	202	Exhibit List <i>Stipulated Trial Exhibit List</i> by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit Exhibit A)(Culbertson, Jeffrey) (Entered: 09/29/2010)
09/29/2010	203	STIPULATION <i>Stipulated Glossary</i> by Plaintiff Sun Construction Company, Inc.. (Culbertson, Jeffrey) (Entered: 09/29/2010)
09/29/2010	204	OBJECTIONS to 200 Pretrial Order, <i>Exhibit A-3, St. Andrews/Alliance Joint Venture's Exhibits</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Cantrell, Connor) (Entered: 09/29/2010)
09/30/2010	205	Exhibit List <i>Revised</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit A)(Cantrell, Connor) (Entered: 09/30/2010)
09/30/2010	206	Exhibit List <i>Revised</i> by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC. (Attachments: # 1 Exhibit A)(Stromquist, Matthew) (Entered: 09/30/2010)
09/30/2010	207	OBJECTIONS to 200 Pretrial Order, <i>Objections to Sun's and F&D's Exhibits A-1 and A-2, respectively</i> , by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC. (Stromquist, Matthew) (Entered: 09/30/2010)
09/30/2010	208	Exhibit List <i>Revised Stipulated Trial Exhibit List</i> by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit Exhibit A)(Culbertson, Jeffrey) (Entered: 09/30/2010)
09/30/2010	209	Exhibit List <i>Sun Construction, Inc.'s, Revised Trial Exhibit List</i> by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit Exhibit A)(Culbertson, Jeffrey) (Entered: 09/30/2010)
09/30/2010	210	OBJECTIONS to 206 Exhibit List by Plaintiff Sun Construction Company, Inc.. (Culbertson, Jeffrey) (Entered: 09/30/2010)
09/30/2010	211	Proposed Jury Instructions by Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Cantrell, Connor) (Entered: 09/30/2010)
10/01/2010	212	Minute Entry for proceedings held before Judge Lewis T. Babcock: Trial Preparation Conference held on 10/1/2010. ORDERED:By October 22, 2010 counsel shall submit their 1) proposed voir dire questions; and 2) the order in which the parties intend to call their witnesses. ORDERED:Counsel shall be present on the first day of trial and be setting up at 8:00 a.m. (Court Reporter Gwen Daniel) (ltbcd,) (Entered: 10/01/2010)
10/12/2010	213	MOTION in Limine by Plaintiff Sun Construction Company, Inc.. (Culbertson, Jeffrey) (Entered: 10/12/2010)
10/13/2010	214	MINUTE ORDER. Sun Construction Company, Inc. has filed a Motion in Limine Regarding Admissibility of Party Correspondence 213 filed 10/12/2010. All other parties have up to and including 10/27/2010 to file a response. By Judge Lewis T. Babcock on 10/13/2010. (sah,) (Entered: 10/13/2010)
10/15/2010	215	MOTION to Strike <i>Expert Testimony of Richard Kerr Under Fed. R. Evid. 702</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit A 1 of 9, # 2 Exhibit A 2 of 9, # 3 Exhibit A 3 of 9, # 4 Exhibit A 4 of 9, # 5

		Exhibit A 5 of 9, # 6 Exhibit A 6 of 9, # 7 Exhibit A 7 of 9, # 8 Exhibit A 8 of 9, # 9 Exhibit A 9 of 9, # 10 Exhibit B and C, # 11 Exhibit D and E, # 12 Exhibit F, # 13 Exhibit G, # 14 Exhibit H and I)(Cantrell, Connor) (Entered: 10/15/2010)
10/18/2010	216	MINUTE ORDER re: 215 Intervenor Plaintiff Fidelity and Deposit Company of Maryland has filed a Motion to Strike Expert Testimony of Richard Kerr Under Fed. R. Evid 702. All other parties have up to and including October 26, 2010 to file a response. By Judge Lewis T. Babcock on 10/18/2010. (sah,) (Entered: 10/18/2010)
10/21/2010	217	MOTION in Limine <i>To Exclude Evidence of Personal or Business Hardships Suffered By Sun Construction Or Is Principals</i> by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC. (Stromquist, Matthew) (Entered: 10/21/2010)
10/22/2010	218	Proposed Voir Dire <i>Questions</i> by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Cantrell, Connor) (Entered: 10/22/2010)
10/22/2010	219	Witness List - <i>Order of Witnesses</i> by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Cantrell, Connor) (Entered: 10/22/2010)
10/22/2010	220	Proposed Voir Dire by Plaintiff Sun Construction Company, Inc.. (Culbertson, Jeffrey) (Entered: 10/22/2010)
10/22/2010	221	Witness List - <i>Order of Intended Witnesses</i> by Plaintiff Sun Construction Company, Inc.. (Culbertson, Jeffrey) (Entered: 10/22/2010)
10/22/2010	222	Proposed Voir Dire by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC. (Stromquist, Matthew) (Entered: 10/22/2010)
10/22/2010	223	Witness List - <i>Order of Witnesses</i> by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC. (Stromquist, Matthew) (Entered: 10/22/2010)
10/25/2010	224	MINUTE ORDER. re: 217 Defendants/Counterclaimants Torix General Contractors, LLC and St. Andrews/ Alliance Joint Venture have filed a Motion in Limine to Exclude Evidence of Personal or Business Hardships Suffered by Sun construction or Its Principals. All other parties have up to and including 10/28/2010 to file a response. By Judge Lewis T. Babcock on 10/25/2010. (sah,) (Entered: 10/25/2010)
10/25/2010	225	MOTION to Compel <i>Supplemental Mandatory Disclosures</i> by Plaintiff Sun Construction Company, Inc.. (Culbertson, Jeffrey) (Entered: 10/25/2010)
10/26/2010	226	RESPONSE to 215 MOTION to Strike <i>Expert Testimony of Richard Kerr Under Fed. R. Evid. 702</i> filed by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5)(Stromquist, Matthew) (Entered: 10/26/2010)
10/26/2010	227	Exhibit List <i>Revised</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit A)(Cantrell, Connor) (Entered: 10/26/2010)
10/27/2010	228	RESPONSE to 213 MOTION in Limine filed by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC. (Attachments: # 1 Exhibit A)(Stromquist, Matthew) (Entered: 10/27/2010)
10/28/2010	229	Proposed Jury Instructions <i>and Revised Proposed Verdict Forms</i> by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Cantrell, Connor) (Entered: 10/28/2010)
10/28/2010	230	RESPONSE to 217 MOTION in Limine <i>To Exclude Evidence of Personal or Business Hardships Suffered By Sun Construction Or Is Principals</i> filed by Plaintiff Sun

		Construction Company, Inc.. (Culbertson, Jeffrey) (Entered: 10/28/2010)
10/28/2010	231	Exhibit List <i>Revised</i> by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC. (Attachments: # 1 Exhibit A)(Stromquist, Matthew) (Entered: 10/28/2010)
10/29/2010	232	RESPONSE to 225 MOTION to Compel <i>Supplemental Mandatory Disclosures</i> filed by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Third Party Plaintiffs St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Counter Defendant St. Andrews/Alliance Joint Venture, Counter Claimants St. Andrews/Alliance Joint Venture, St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Torix General Contractors, LLC. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Stromquist, Matthew) (Entered: 10/29/2010)
10/29/2010	233	Cross MOTION to Compel <i>and Response to Sun's Motion to Compel [Doc. #225]</i> by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D)(Cantrell, Connor) (Entered: 10/29/2010)
10/29/2010	234	Exhibit List <i>REVISED</i> by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit A Revised Exhibit List)(Cantrell, Connor) (Entered: 10/29/2010)
10/29/2010	235	RESPONSE to 233 Cross MOTION to Compel and Response to Sun's Motion to Compel 225 filed by Defendant St. Andrews/Alliance Joint Venture, ThirdParty Plaintiff St. Andrews/Alliance Joint Venture, Counter Defendant St. Andrews/Alliance Joint Venture, Counter Claimants St. Andrews/Alliance Joint Venture, St. Andrews/Alliance Joint Venture. (Stromquist, Matthew) Modified on 11/1/2010 to remove repetitive text (sah,). (Entered: 10/29/2010)
10/29/2010	236	Exhibit List <i>Revised</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit A)(Cantrell, Connor) (Entered: 10/29/2010)
11/01/2010	237	ORDER. Plaintiffs Motion in Limine, filed 10/12/2010 213 is DENIED WITHOUT PREJUDICE. Intervenor Plaintiffs Motion to Strike Expert Testimony of Richard Kerr Under Fed. R. Evid. 702, filed 10/15/2010 215 shall be addressed at the appropriate time during trial. Defendants Motion in Limine to Exclude Evidence of Personal or Business Hardships Suffered by Sun Construction or its Principals, filed 10/21/2010 217 is DENIED WITHOUT PREJUDICE. Plaintiffs Motion to Compel Supplemental Mandatory Disclosures, 10/25/2010 225 is DENIED. Intervenor Plaintiffs Cross Motion to Compel, filed 10/29/2010 233 is DENIED. By Judge Lewis T. Babcock on 11/01/2010. (sah,) (Entered: 11/02/2010)
11/01/2010	238	Minute Entry for proceedings held before Judge Lewis T. Babcock: Jury Trial - Day One - held on 11/1/2010. Trial continued. (Court Reporter Gwen Daniel) (ltbcd,) (Entered: 11/02/2010)
11/02/2010	239	Minute Entry for proceedings held before Judge Lewis T. Babcock: Jury Trial - Day Two - held on 11/2/2010. Trial continued. (Court Reporter Gwen Daniel) (ltbcd,) (Entered: 11/03/2010)
11/03/2010	240	Minute Entry for proceedings held before Judge Lewis T. Babcock: Jury Trial - Day Three - held on 11/3/2010. Trial continued. (Court Reporter Gwen Daniel) (ltbcd,) (Entered: 11/04/2010)
11/04/2010	241	Minute Entry for proceedings held before Judge Lewis T. Babcock: Jury Trial - Day Four - held on 11/4/2010. Trial continued. (Court Reporter Gwen Daniel) (ltbcd,) (Entered: 11/05/2010)

11/05/2010	242	Minute Entry for proceedings held before Judge Lewis T. Babcock: Jury Trial - Day Five - held on 11/5/2010. Trial continued. (Court Reporter Gwen Daniel) (ltbcd,) (Entered: 11/05/2010)
11/08/2010	243	Minute Entry for proceedings held before Judge Lewis T. Babcock: Jury Trial - Day Six - held on 11/8/2010. Trial continued. (Court Reporter Gwen Daniel) (ltbcd,) (Entered: 11/09/2010)
11/09/2010	244	Minute Entry for proceedings held before Judge Lewis T. Babcock: Jury Trial - Day Seven - held on 11/9/2010. Trial continued. (Court Reporter: Gwen Daniel) (ltbcd,) (Entered: 11/10/2010)
11/10/2010	245	Minute Entry for proceedings held before Judge Lewis T. Babcock: Jury Trial - Day Eight - held on 11/10/2010. Trial continued. (Court Reporter: Gwen Daniel) (ltbcd,) (Entered: 11/10/2010)
11/12/2010	246	Minute Entry for proceedings held before Judge Lewis T. Babcock: Jury Trial - Day Nine - held on 11/12/2010. Trial continued. (Court Reporter: Terri Lindblom) (ltbcd,) (Entered: 11/15/2010)
11/15/2010	247	Minute Entry for proceedings held before Judge Lewis T. Babcock: Jury Trial - Day Ten - held on 11/15/2010. Trial continued. (Court Reporter: Gwen Daniel) (ltbcd,) (Entered: 11/16/2010)
11/16/2010	248	Proposed Jury Instructions <i>Spearin</i> by Plaintiff Sun Construction Company, Inc.. (Henry, Curtis) (Entered: 11/16/2010)
11/16/2010	249	Minute Entry for proceedings held before Judge Lewis T. Babcock: ORDERED: Intervenor Plaintiffs Motion to Strike Expert Testimony of Richard Kerr Under Fed. R. Evid. 702 215 is DENIED. Jury Trial - Day Eleven - held on 11/16/2010. Trial continued, (Court Reporter: Gwen Daniel) (ltbcd,) (Entered: 11/17/2010)
11/17/2010	250	Minute Entry for proceedings held before Judge Lewis T. Babcock: Jury Trial - Day Twelve - held on 11/17/2010. Trial continued. (Court Reporter: Gwen Daniel) (ltbcd,) (Entered: 11/17/2010)
11/17/2010	253	STIPULATION AND ORDER REGARDING CUSTODY OF EXHIBITS AND DEPOSITIONS. By Judge Lewis T. Babcock on 11/17/2010. (sah,) (Entered: 11/22/2010)
11/18/2010	251	Minute Entry for proceedings held before Judge Lewis T. Babcock: Jury Trial - Day Thirteen - held on 11/18/2010. ORDERED: Based on the stipulation of the parties: (1) Plaintiff Sun's implied contract claim is withdrawn, each party to bear its own costs and attorney's fees; and (2) Defendant JV's breach of Sun subcontract claim (third claim) and two indemnification claims (fourth and fifth claims) are withdrawn, each party to bear its own costs and attorneys fees. All oral Rule 50 motions are denied. Intervenor Plaintiff F&D withdraws any affirmative claim for relief based on cardinal change and any affirmative defense based on cardinal change. Trial continued. (Court Reporter: Gwen Daniel) (lbush) (Entered: 11/19/2010)
11/19/2010	252	Minute Entry for proceedings held before Judge Lewis T. Babcock: Jury Trial - Day Fourteen - held on 11/19/2010. Trial continued. (Court Reporter: Gwen Daniel) (lbush) (Entered: 11/19/2010)
11/22/2010	254	Minute Entry for proceedings held before Judge Lewis T. Babcock: Jury Trial - Day Fifteen - completed on 11/22/2010. JURY VERDICT. ORDERED:Sun and F&D have 30 days to file a motion for attorneys' fees, costs and interest under the contract. The Joint Venture has 20 days to respond. Sun and F&D have 14 days to reply. ORDERED:The

		Joint Venture has 30 days to file its motion for judgment notwithstanding the Verdict; responses are due in 20 days; and the reply is due in 14 days. (Court Reporter: Gwen Daniel) (ltbcd,) (Entered: 11/23/2010)
11/22/2010	256	Amended Minute Entry for proceedings held before Judge Lewis T. Babcock: The Minutes are amended to reflect the language, "Clerks Note:Pursuant to General Order 2008-03 the original Jury Verdict has been filedconventionally by delivery to the clerks office. A representation of the Jury Verdict is attached to the court minutes. The Minutes are also amended to include all attachments. (Court Reporter: Gwen Daniel) (ltbcd,) (Additional attachment(s) added on 11/24/2010: # 1 Special Jury Verdict Forms, # 2 Refused Jury Instruction, # 3 Jury Instructions, # 6 Clerk's Witness Lists, # 7 Clerk's Exhibit Lists - Stipulated, # 8 Clerk's Exhibit List - Sun, # 9 Clerk's Exhibit List - F&D, # 10 Clerk's Exhibit List - JV) (wjc,). Modified on 11/24/2010 to add attachments to Amended Minutes (wjc,). (Entered: 11/24/2010)
11/24/2010	255	MINUTE ORDER. As stated on the record the last day of the trial to jury, November 22, 2010, Plaintiff Sun Construction and Intervenor Plaintiff F&D have up to and including December 22, 2010 to file a motion for attorneys' fees, costs and interest under the contract. The Joint Venture has 20 days to respond. Sun and F&D have 14 days to reply.The Joint Venture has up to and including December 22, 2010 to file its motion for judgment notwithstanding the Verdict; responses are due in 20 days; and the reply is due in 14 days by Judge Lewis T. Babcock on 11/24/10. (ltbcd,) (Entered: 11/24/2010)
11/24/2010	257	Docket Annotation re: 256 Amended Minute Entry. Modified on 11/24/2010 to add attachments to Amended Minutes. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED. (wjc,) (Entered: 11/24/2010)
11/24/2010	258	JUDGMENT in favor of Fidelity and Deposit Company of Maryland, Sun Construction Company, Inc., United States of America For The Use and Benefit of Sun Construction Company, Inc. against Fidelity and Deposit Company of Maryland, St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America re: 256 Amended Minute Entry, in the amount of \$4,143,416.00 in damages. F&D is entitled to \$1,300,000.00, the portion of \$4,143,416.00 pursuant to its Assignment/subrogation claim. IT IS FURTHER ORDERED that the issue of attorneys fees and costs to the prevailing parties is held in abeyance. IT IS FURTHER ORDERED that post-judgment interest shall accrue at the legalrate of.27% per annum from the date of entry of judgment. by Judge Lewis T. Babcock on 11/24/2010. (erv,) (Entered: 11/24/2010)
12/22/2010	259	Renewed MOTION for Judgment as a Matter of Law by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G)(Stromquist, Matthew) (Entered: 12/22/2010)
12/22/2010	260	Proposed Bill of Costs by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit Attachment 1 of 12 to Bill of Costs, # 2 Exhibit Attachment 2 of 12 to Bill of Costs, # 3 Exhibit Attachment 3 of 12 to Bill of Costs, # 4 Exhibit Attachment 4 of 12 to Bill of Costs, # 5 Exhibit Attachment 5 of 12 to Bill of Costs, # 6 Exhibit Attachment 6 of 12 to Bill of Costs, # 7 Exhibit Attachment 7 of 12 to Bill of Costs, # 8 Exhibit Attachment 8 of 12 to Bill of Costs, # 9 Exhibit Attachment 9 of 12 to Bill of Costs, # 10 Exhibit Attachment 10 of 12 to Bill of Costs, # 11 Exhibit Attachment 11 of 12 to Bill of Costs, # 12 Exhibit Attachment 12 of 12 to Bill of Costs)(Cantrell, Connor) (Entered: 12/22/2010)
12/22/2010	261	MOTION to Amend/Correct/Modify <i>Judgment to Include Sun's Attorneys Fees, Costs, and Prejudgment Interest and Fees and Costs Incurred by Sun to Intervenor Plaintiff</i>

		<i>F&D</i> by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B, # 3 Exhibit Exhibit C, # 4 Exhibit Exhibit D, # 5 Exhibit Exhibit E, # 6 Exhibit Exhibit F - Part 1, # 7 Exhibit Exhibit F - Part 2, # 8 Exhibit Exhibit F - Part 3, # 9 Exhibit Exhibit G, # 10 Exhibit Exhibit H)(Culbertson, Jeffrey) (Entered: 12/22/2010)
12/22/2010	262	MOTION for Joinder re 261 MOTION to Amend/Correct/Modify <i>Judgment to Include Sun's Attorneys Fees, Costs, and Prejudgment Interest and Fees and Costs Incurred by Sun to Intervenor Plaintiff F&D</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit Exhibit A)(Cantrell, Connor) (Entered: 12/22/2010)
12/23/2010	263	MINUTE ORDER. Defendants have filed a Renewed Motion for Judgment as a Matter of Law 259 ; Sun Construction has filed a Motion to Amend Judgment to Include Suns Attorneys Fees, Costs, and Prejudgment Interest and Fees and Costs Incurred by Sun to Intervenor Plaintiff F&D 261 ; Fidelity and Deposit Company of Maryland has filed a Joinder re: Motion to Amend Judgment to Include Costs and P:rejudice Interest [Doc 261] 262 . Responses to these motions are due on or before 1/13/2011. Replies are due 1/27/2011. By Judge Lewis T. Babcock on 12/23/2010. (sah,) (Entered: 12/23/2010)
01/13/2011	264	RESPONSE to 259 Renewed MOTION for Judgment as a Matter of Law filed by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Cantrell, Connor) (Entered: 01/13/2011)
01/13/2011	265	RESPONSE to <i>F&D's Proposed Bill of Costs</i> by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America. (Attachments: # 1 Exhibit 1-Judgment dtd 11/24/2010)(Stromquist, Matthew) (Entered: 01/13/2011)
01/13/2011	266	RESPONSE to 262 MOTION for Joinder re 261 MOTION to Amend/Correct/Modify Judgment to Include Sun's Attorneys Fees, Costs, and Prejudgment Interest and Fees and Costs Incurred by Sun to Intervenor Plaintiff F&D filed by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America. (Attachments: # 1 Exhibit 1-Judgment dtd 11/24/2010, # 2 Exhibit 2-Pretial Order dtd 9/28/2010, # 3 Exhibit 3-Agreement of Indemnity, # 4 Exhibit 4-Travelers Payment Bond)(Stromquist, Matthew) Modified on 1/14/2011 to remove repetitive text (sah,). (Entered: 01/13/2011)
01/13/2011	267	RESPONSE to 259 Renewed MOTION for Judgment as a Matter of Law filed by Plaintiff Sun Construction Company, Inc.. (Henry, Curtis) (Entered: 01/13/2011)
01/21/2011	268	MOTION for Hearing/Conference re 261 MOTION to Amend/Correct/Modify <i>Judgment to Include Sun's Attorneys Fees, Costs, and Prejudgment Interest and Fees and Costs Incurred by Sun to Intervenor Plaintiff F&D</i> by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit Exhibit A - Part 1, # 2 Exhibit Exhibit A - Part 2, # 3 Exhibit Exhibit A - Part 3, # 4 Exhibit Exhibit A - Part 4, # 5 Exhibit Exhibit A - Part 5, # 6 Exhibit Exhibit B)(Henry, Curtis) (Entered: 01/21/2011)
01/24/2011	269	MINUTE ORDER re: 268 Plaintiff Sun Construction has filed a Motion Requesting a Hearing Regarding the Reasonability of Plaintiffs Requested Attorneys Fees. Responses are due on or before 2/14/2011. Replies are due 2/28/2011. By Judge Lewis T. Babcock on 1/24/2011. (sah,) (Entered: 01/24/2011)

01/27/2011	270	REPLY to Response to 261 MOTION to Amend/Correct/Modify Judgment to Include Sun's Attorneys Fees, Costs, and Prejudgment Interest and Fees and Costs Incurred by Sun to Intervenor Plaintiff F&D and Reply to Defendants' Response to Bill of Costs 265 filed by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Cantrell, Connor) Modified on 1/28/2011 to create linkage (sah,). (Entered: 01/27/2011)
01/27/2011	271	REPLY to Response to 259 Renewed MOTION for Judgment as a Matter of Law (<i>Combined Reply</i>) filed by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America. (Attachments: # 1 Exhibit A-Sun's Damages Summary, # 2 Exhibit B-Excerpts from 11/4/2010 Trial Transcript, # 3 Exhibit C-Excerpts from 11/5/2010 Trial Transcript, # 4 Exhibit D-Excerpts from 11/8/2010 Trial Transcript, # 5 Exhibit E-Excerpts from 11/19/2010 Trial Transcript, # 6 Exhibit F-Excerpts from 11/19/2010 Trial Transcript, # 7 Exhibit G-Excerpts from 11/2/2010 Trial Transcript)(Stromquist, Matthew) (Entered: 01/27/2011)
01/27/2011	272	REPLY to Response to 261 MOTION to Amend/Correct/Modify <i>Judgment to Include Sun's Attorneys Fees, Costs, and Prejudgment Interest and Fees and Costs Incurred by Sun to Intervenor Plaintiff F&D</i> filed by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B)(Henry, Curtis) (Entered: 01/27/2011)
01/28/2011	273	ORDER. The parties will file their preliminary statements concerning certification of this question to the Colorado Supreme Court on or before Friday, 2/28/2011. By Judge Lewis T. Babcock on 1/28/2011. (sah,) (Entered: 01/28/2011)
02/14/2011	274	RESPONSE to 268 MOTION for Hearing/Conference re 261 MOTION to Amend/Correct/Modify Judgment to Include Sun's Attorneys Fees, Costs, and Prejudgment Interest and Fees and Costs Incurred by Sun to Intervenor Plaintiff F&D filed by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Cantrell, Connor) Modified on 2/15/2011 to remove repetitive text (sah2,). (Entered: 02/14/2011)
02/14/2011	275	RESPONSE to 268 MOTION for Hearing/Conference re 261 MOTION to Amend/Correct/Modify Judgment to Include Sun's Attorneys Fees, Costs, and Prejudgment Interest and Fees and Costs Incurred by Sun to Intervenor Plaintiff F&D filed by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America. (Stromquist, Matthew) Modified on 2/15/2011 to remove repetitive text (sahsl,). (Entered: 02/14/2011)
02/28/2011	276	STATEMENT re 273 Order - <i>Preliminary Statement Requesting Certification to the Colorado Supreme Court</i> by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America. (Attachments: # 1 Exhibit A - City of Westminster v. Centric-Jones Constructors) (Stromquist, Matthew) (Entered: 02/28/2011)
02/28/2011	277	STATEMENT <i>Regarding Whether to Certify Question to Colorado Supreme Court Pursuant to Court's January 28, 2010 Order</i> by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit A-1, # 2 Exhibit A-2, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D, # 6 Exhibit E)(Cantrell, Connor) (Entered: 02/28/2011)
02/28/2011	278	STATEMENT re 273 Order <i>Regarding Certification to the Colorado Supreme Court</i> by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit Exhibit A - Part 1, # 2 Exhibit Exhibit A - Part 2, # 3 Exhibit Exhibit A - Part 3, # 4 Exhibit Exhibit B, # 5 Exhibit Exhibit C, # 6 Exhibit Exhibit D, # 7 Exhibit Exhibit E, # 8 Exhibit Exhibit F, # 9 Exhibit Exhibit G, # 10 Exhibit Exhibit H)(Henry, Curtis) (Entered: 02/28/2011)

02/28/2011	279	REPLY to Response to 268 MOTION for Hearing/Conference re 261 MOTION to Amend/Correct/Modify <i>Judgment to Include Sun's Attorneys Fees, Costs, and Prejudgment Interest and Fees and Costs Incurred by Sun to Intervenor Plaintiff F&D</i> MOTION for Hearing/Conference re 261 MOTION to Amend/Correct/Modify <i>Judgment to Include Sun's Attorneys Fees, Costs, and Prejudgment Interest and Fees and Costs Incurred by Sun to Intervenor Plaintiff F&D</i> filed by Plaintiff Sun Construction Company, Inc.. (Henry, Curtis) (Entered: 02/28/2011)
02/28/2011	280	STATEMENT re 273 Order <i>Regarding Whether to Certify Question to Colorado Supreme Court</i> by Counter Defendant Fidelity and Deposit Company of Maryland. (Attachments: # 1 Exhibit A-1, # 2 Exhibit A-2, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D, # 6 Exhibit E)(Cantrell, Connor) (Entered: 02/28/2011)
03/01/2011	281	Docket Annotation re: 277 Statement. This document was the red-lined version. Counsel has refiled (docket no. 280). TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (sah,) (Entered: 03/01/2011)
03/02/2011	282	STATEMENT re 278 Statement, 280 Statement, <i>Defendants' Combined Response to Sun's and F&D's Statements</i> by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America. (Stromquist, Matthew) (Entered: 03/02/2011)
03/02/2011	283	STATEMENT re 282 Statement, <i>In Response to Defendant's Combined Statement in Response to Sun Construction, Inc.'s Statement Regarding Certification of Question to the Colorado Supreme Court</i> by Plaintiff Sun Construction Company, Inc.. (Henry, Curtis) (Entered: 03/02/2011)
03/08/2011	284	ORDER. The Defendants Renewed Motion for Judgment as a Matter of Law 259 is DENIED. By Judge Lewis T. Babcock on 3/8/2011.(sah,) (Entered: 03/08/2011)
03/21/2011	285	MOTION to Stay <i>Judgment Pending Appeal and for Approval of Supersedeas Bond</i> by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, Third Party Plaintiffs St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, Counter Defendant St. Andrews/Alliance Joint Venture, Counter Claimants St. Andrews/Alliance Joint Venture, St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, Travelers Casualty and Surety Company of America. (Attachments: # 1 Exhibit A, # 2 Proposed Order (PDF Only))(Stromquist, Matthew) (Entered: 03/21/2011)
03/22/2011	286	MINUTE ORDER. Defendants have filed a Motion to Stay Judgment Pending Appeal and for Approval of Supersedeas Bond 285 filed 3/21/2011. Plaintiffs have up to and including 4/12/2011 to file a response. Defendants have up to and including 4/26/2011 to file a reply. By Judge Lewis T. Babcock on 3/22/2011. (sah,) (Entered: 03/22/2011)
04/06/2011	287	NOTICE OF APPEAL as to 259 Renewed MOTION for Judgment as a Matter of Law, 258 Judgment,,, 284 Order on Motion for Judgment as a Matter of Law by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, Third Party Plaintiffs St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, Counter Defendant St. Andrews/Alliance Joint Venture, Counter Claimants St. Andrews/Alliance Joint Venture, St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America, Travelers Casualty and Surety Company of America (Varholak, Katherine) (Entered: 04/06/2011)

04/06/2011	288	NOTICE of Entry of Appearance by Katherine Dawson Varholak on behalf of St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC(a Colorado limited liability company), Travelers Casualty and Surety Company of America (Varholak, Katherine) (Entered: 04/06/2011)
04/07/2011	289	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 287 Notice of Appeal, filed by Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture, Travelers Casualty and Surety Company of America to the U.S. Court of Appeals. (Retained counsel; Fee not paid) (Attachments: # 1 Docket Sheet, # 2 Preliminary Record including Notice of Appeal)(bjrsl,) (Entered: 04/07/2011)
04/07/2011	290	USCA Case Number 11-1145 for 287 Notice of Appeal, filed by Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture, Travelers Casualty and Surety Company of America. (bjrsl,) (Entered: 04/07/2011)
04/07/2011	291	USCA Appeal Fees (USCA Case No. 11-1145); received payment of \$455, receipt number 36778 re 287 Notice of Appeal, filed by Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture, Travelers Casualty and Surety Company of America (bjrsl,) (Entered: 04/07/2011)
04/12/2011	292	RESPONSE to 285 MOTION to Stay <i>Judgment Pending Appeal and for Approval of Supersedeas Bond</i> filed by Plaintiff Sun Construction Company, Inc.. (Henry, Curtis) (Entered: 04/12/2011)
04/12/2011	293	MOTION for Joinder re 292 Response to Motion to Stay <i>Judgment Pending Appeal and for Approval of Supersedeas Bond</i> by Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Cantrell, Connor) (Entered: 04/12/2011)
04/19/2011	294	TRANSCRIPT ORDER FORM re 287 Notice of Appeal,, by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America (Stromquist, Matthew) (Entered: 04/19/2011)
04/20/2011	295	TRANSCRIPT ORDER FORM re 287 Notice of Appeal,, (<i>Amended</i>) by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America (Stromquist, Matthew) (Entered: 04/20/2011)
04/20/2011	296	NOTICE OF APPEAL as to 248 Proposed Jury Instructions, 237 Order on Motion in Limine,,,,,, Order on Motion to Compel,,,,, <i>NOTICE OF CROSS-APPEAL</i> by Plaintiff Sun Construction Company, Inc. (Henry, Curtis) (Entered: 04/20/2011)
04/21/2011	297	LETTER Transmitting Notice of Cross-Appeal to all counsel advising of the transmittal of the 296 Notice of Cross-Appeal filed by Sun Construction Company, Inc. to the U.S. Court of Appeals. (Retained counsel; Fee not paid) (Attachments: # 1 Docket Sheet, # 2 Preliminary Record including Notice of Cross-Appeal)(bjrsl,) (Entered: 04/21/2011)
04/21/2011	298	REPORTER TRANSCRIPT ORDER FORM filed by Gwen Daniel; Transcripts ordered 11/01/10 - 11/22/10 (Trial) re: 287 Notice of Appeal by Torix, et al. Transcripts due by 5/18/2011. (bjrsl,) (Entered: 04/21/2011)
04/21/2011	299	USCA Case Number 11-1168 for 296 Notice of CrossAppeal filed by Sun Construction Company, Inc.. Filing fee due in district court. (bjrsl,) (Entered: 04/21/2011)
04/26/2011	300	REPLY to Response to 285 MOTION to Stay <i>Judgment Pending Appeal and for Approval of Supersedeas Bond</i> filed by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America. (Attachments: # 1 Exhibit 1-Payment Bond)(Stromquist, Matthew) (Entered: 04/26/2011)
04/26/2011	301	USCA Appeal Fees (USCA Case No. 11-1168); received payment of \$455, receipt number 37309 re 296 Notice of Cross-Appeal filed by Sun Construction Company, Inc.

		(bjrsl,) (Entered: 04/27/2011)
04/27/2011	302	MINUTE ORDER. Please be advised that a hearing on Defendants Motion to Stay Judgment Pending Appeal and for Approval of Supersedeas Bond 285 is set 5/18/2011 at 10:00 a.m. in Courtroom C401 before Judge Lewis T. Babcock. By Judge Lewis T. Babcock on 4/27/2011. (sah,) (Entered: 04/27/2011)
05/02/2011	303	MOTION to Vacate 302 Order Setting Hearing on Motion, by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, ThirdParty Plaintiff Travelers Casualty and Surety Company of America. (Stromquist, Matthew) (Entered: 05/02/2011)
05/03/2011	304	TRANSCRIPT ORDER FORM re 296 Notice of Appeal <i>Notice of Cross-Appeal</i> by Plaintiff Sun Construction Company, Inc. (Henry, Curtis) (Entered: 05/03/2011)
05/05/2011	305	MINUTE ORDER. Please be advised that a telephone conference/hearing on Defendants Motion to Vacate and Reset Hearing Set for May 18, 2011 303 is set 5/13/2011 at 9:30 a.m. in Courtroom C401 before Judge Lewis T. Babcock. By Judge Lewis T. Babcock on 5/5/2011. (sah,) (Entered: 05/05/2011)
05/12/2011	306	STATEMENT <i>Advisement of Attempt to Resolve Controversy and Conferral with Defendants</i> by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit Exhibit A)(Culbertson, Jeffrey) (Entered: 05/12/2011)
05/13/2011	307	ORDER. Defendants Motion to Vacate and Reset Hearing Set for 5/18/2011 303 is GRANTED. Defendants Motion to Stay Judgment Pending Appeal and For Approval of Supersedeas Bond 285 is set for hearing on 5/31/2011 at 9:00 a.m. in Courtroom C401. Fidelity and Deposit Company of Marylands Joinder in Sun Construction, Inc.s Response to Defendants Motion to Stay Judgment Pending Appeal and for Approval of Supersedeas Bond 293 is GRANTED. Plaintiff Sun Construction Company, Inc.s Motion Requesting a Hearing Regarding the Reasonability of Plaintiffs Requested Attorneys Fees 268 is HELD IN ABEYANCE. Fidelity and Deposit Company of Marylands Joinder Re: Motion to Amend Judgment to Include Costs and Pre-Judgment Interest 262 is GRANTED. By Judge Lewis T. Babcock on 5/13/2011.(sah,) (Entered: 05/13/2011)
05/13/2011	308	Courtroom Minutes for Telephone Conference held before Judge Lewis T. Babcock on 5/13/2011. Granting 303 Defendants' Motion to Vacate and Reset Hearing Set for May 18, 2011. Defendants' Motion to Stay Judgment Pending Appeal and for Approval of Supersedeas Bond 285 is set for hearing on 5/31/2011 at 9:00 a.m. in Courtroom C401. Granting 293 Fidelity and Deposit Company of Maryland's Joinder. Holding in abeyance 268 Plaintiff Sun Construction Company, Inc.'s Motion Requesting a Hearing. Granting 262 Fidelity and Deposit Company of Maryland's Joinder Re: Motion to Amend Judgment. (Court Reporter: Tracy Weir) (eseam) (Entered: 05/16/2011)
05/24/2011	309	VOIR DIRE TRANSCRIPT of proceedings held on 11/1/2010 before Judge Babcock. Pages: 1-55. (Daniel, Gwen) (Entered: 05/24/2011)

05/24/2011	310	TRANSCRIPT of Jury Trial - Day 1 held on 11/1/2010 before Judge Babcock. Pages: 56-171. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/25/2011. (Daniel, Gwen) (Entered: 05/24/2011)
05/24/2011	311	TRANSCRIPT of Jury Trial - Day 2 held on 11/2/2010 before Judge Babcock. Pages: 172-369. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/25/2011. (Daniel, Gwen) (Entered: 05/24/2011)
05/24/2011	312	TRANSCRIPT of Jury Trial - Day 3 held on 11/3/2010 before Judge Babcock. Pages: 370-619. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/25/2011. (Daniel, Gwen) (Entered: 05/24/2011)
05/24/2011	313	TRANSCRIPT of Jury Trial - Day 4 held on 11/4/2010 before Judge Babcock. Pages: 620-857. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/25/2011. (Daniel, Gwen) (Entered: 05/24/2011)
05/24/2011	314	TRANSCRIPT of Jury Trial - Day 5 held on 11/5/2010 before Judge Babcock. Pages: 858-1091. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts

		document at www.cod.uscourts.gov.
 Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/25/2011. (Daniel, Gwen) (Entered: 05/24/2011)
05/24/2011	315	TRANSCRIPT of Jury Trial - Day 6 held on 11/8/2010 before Judge Babcock. Pages: 1092-1277. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.
 Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/25/2011. (Daniel, Gwen) (Entered: 05/24/2011)
05/24/2011	316	TRANSCRIPT of Jury Trial - Day 7 held on 11/9/2010 before Judge Babcock. Pages: 1278-1484. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.
 Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/25/2011. (Daniel, Gwen) (Entered: 05/24/2011)
05/24/2011	317	TRANSCRIPT of Jury Trial - Day 8 held on 11/10/2010 before Judge Babcock. Pages: 1485-1729. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.
 Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/25/2011. (Daniel, Gwen) (Entered: 05/24/2011)
05/26/2011	318	TRANSCRIPT of Jury Trial - Day 10 held on 11/15/2010 before Judge Babcock. Pages: 1694-2195. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.
 Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/29/2011. (Daniel, Gwen) (Entered: 05/26/2011)
05/26/2011	319	TRANSCRIPT of Jury Trial - Day 11 held on 11/16/2010 before Judge Babcock. Pages: 2196-2389. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of

		Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/29/2011. (Daniel, Gwen) (Entered: 05/26/2011)
05/26/2011	320	TRANSCRIPT of Jury Trial - Day 12 held on 11/17/2010 before Judge Babcock. Pages: 2390-2600. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/29/2011. (Daniel, Gwen) (Entered: 05/26/2011)
05/26/2011	321	TRANSCRIPT of Jury Trial - Day 9 held on 11/12/10 before Judge Babcock. Pages: 1730-1963. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/29/2011. (Lindblom, Therese) (Entered: 05/26/2011)
05/27/2011	322	TRANSCRIPT of Jury Trial - Day 13 held on 11/18/2010 before Judge Babcock. Pages: 2601-2830. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/29/2011. (Daniel, Gwen) (Entered: 05/27/2011)

05/27/2011	323	TRANSCRIPT of Jury Trial - Day 14 held on 11/19/2010 before Judge Babcock. Pages: 2831-2958. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/29/2011. (Daniel, Gwen) (Entered: 05/27/2011)
05/27/2011	324	TRANSCRIPT of Jury Trial - Day 15 held on 11/22/2010 before Judge Babcock. Pages: 2959-2975. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/29/2011. (Daniel, Gwen) (Entered: 05/27/2011)
05/31/2011	325	LETTER TO USCA and all counsel certifying the record is complete as to 287 Notice of Appeal, filed by Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture, Travelers Casualty and Surety Company of America, 296 Notice of Cross-Appeal filed by Sun Construction Company, Inc.. (Appeal No. 11-1145 & 11-1168) (bjrsl,) (Entered: 05/31/2011)
05/31/2011	326	Courtroom Minutes - Minute Entry for proceedings held before Judge Lewis T. Babcock: Motion Hearing held on 5/31/2011. Taking under advisement 261 Motion to Amend Judgment. Taking under advisement 268 Motion Requesting a Hearing. Taking under advisement 285 Motion to Stay Judgment Pending Appeal and for Approval of Supersedeas Bond. (Court Reporter: Tracy Weir) (eseam) (Entered: 05/31/2011)
06/06/2011	327	ORDER. The Motion to Stay Judgment Pending Appeal and for Approval of Supersedeas Bond filed by Defendants, Torix General Contractors, LLC; St. Andrews/Alliance Joint Venture; and Travelers Casualty and Surety Company of America 285 is DENIED. The Defendants must post a supersedeas bond in the amount of \$6,000,000.00 in order to be granted a stay pursuant to Fed.R.Civ.P. 62(d). By Judge Lewis T. Babcock on 6/6/2011. (sah,) (Entered: 06/06/2011)
06/06/2011	328	ORDER. Plaintiff Sun Construction Company Inc.s Motion Requesting a Hearing Regarding the Reasonability of Plaintiffs Requested Attorneys Fees 268 is GRANTED; Proposed Bill of Costs filed by Intervenor Plaintiff Fidelity and Deposit Company of Maryland 260 is DENIED; Plaintiff Sun Construction Company Inc.s Motion to Amend Judgment to Include Attorneys Fees, Costs, and Prejudgment Interest, and Fees and Costs Incurred by Intervenor Plaintiff F&D 261 is GRANTED IN PART. The extent that any additional relief is sought in the Motion to Amend Judgment 261 and F&Ds Joinder 262 , I DENY the motions. By Judge Lewis T. Babcock on 6/6/2011.(sah,) (Entered: 06/06/2011)
06/06/2011	329	MINUTE ORDER. As a result of this Courts Order dated 6/6/2011 328 . Defendants have up to and including 6/27/2011 to file a response regarding the reasonableness of the

		requested attorney fees. Plaintiff Sun has up to and including 7/11/2011 to file a reply thereto. By Judge Lewis T. Babcock on 6/6/2011. (sah,) (Entered: 06/06/2011)
06/09/2011	330	AMENDED JUDGMENT by Clerk, approved by Judge Lewis T. Babcock re: 328 Order and 258 Judgment, by Clerk on 6/9/11. (lsw,) Modified on 6/10/2011 to add text "AMENDED" (lsw,). (Entered: 06/09/2011)
06/10/2011	331	Docket Annotation re: 330 Clerk's Judgment. Modified on 6/10/2011 to add text "AMENDED" TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (lsw,) (Entered: 06/10/2011)
06/13/2011	332	Unopposed MOTION to Stay re 330 Clerk's Judgment by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America. (Attachments: # 1 Exhibit A- Supersedeas Bond) (Stromquist, Matthew) (Entered: 06/13/2011)
06/17/2011	333	ORDER. Defendants' (Renewed) Unopposed Motion to Stay Amended Judgment Pending Appeal and for Approval of Supersedeas Bond 332 is GRANTED. The Amended Judgment 330 is STAYED pending appeal and the tendered Supersedeas Bond is APPROVED. By Judge Lewis T. Babcock on 6/17/2011.(sah,) (Entered: 06/17/2011)
06/17/2011	334	SUPERSEDEAS BOND in the amount of \$6,000,000.00 posted by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America. (bjrsl,) (Entered: 06/17/2011)
06/27/2011	335	Unopposed MOTION for Extension of Time to Order 329 re Ds' Response to reasonableness of attorney fees by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC. (Attachments: # 1 Proposed Order (PDF Only))(Varholak, Katherine) Modified on 6/28/2011 to create linkage (sah2,). (Entered: 06/27/2011)
06/28/2011	336	MINUTE ORDER. Defendants Unopposed Motion for Extension of Time to File Their Response Regarding the Reasonableness of Fees 335 is GRANTED. Defendants have up to and including 7/5/2011 to file their response and Plaintiff Sun has up to and including 7/18/2011 to file its reply. By Judge Lewis T. Babcock on 6/28/2011.(sah,) (Entered: 06/28/2011)
07/05/2011	337	RESPONSE to 329 Minute Order, by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America. (Attachments: # 1 Exhibit 1-Judgment dated 11/24/2011)(Stromquist, Matthew) (Entered: 07/05/2011)
07/18/2011	338	REPLY to Response to 262 MOTION for Joinder re 261 MOTION to Amend/Correct/Modify Judgment to Include Sun's Attorneys Fees, Costs, and Prejudgment Interest and Fees and Costs Incurred by Sun to Intervenor Plaintiff F&D filed by Plaintiff Sun Construction Company, Inc.. (Attachments: # 1 Exhibit Exhibit A) (Culbertson, Jeffrey) Modified on 7/19/2011 to remove repetitive text(sah2,). (Entered: 07/18/2011)
07/20/2011	339	MINUTE ORDER. re: 261 Plaintiff Suns Motion to Amend Judgment to Include Attorneys Fees, Costs, and Prejudgment Interest, and Fees and Costs Incurred by Intervenor Plaintiff F&D. A Motion Hearing set for 8/18/2011 10:00 AM in Courtroom C401 before Judge Lewis T. Babcock. By Judge Lewis T. Babcock on 7/20/2011. (sah,) (Entered: 07/20/2011)
08/18/2011	340	MINUTE ENTRY for Motion Hearing held before Judge Lewis T. Babcock on 8/18/2011. ORDERED: The issue of the reasonableness of fees is TAKEN UNDER ADVISEMENT. (Court Reporter: Kara Spitler) (lag) (Entered: 08/18/2011)

08/18/2011	341	ORDER. Plaintiff, Sun Construction Company, Inc. (Sun), is awarded the amount of \$535,216.62 pursuant to Paragraph 39 of the parties subcontract for its reasonable attorney fees incurred in this matter against Defendants, Torix General Contractors, LLC. and St. Andrews/Alliance Joint Venture (the Joint Venture). By Judge Lewis T. Babcock on 8/18/2011. (sah,) (Entered: 08/18/2011)
09/15/2011	342	NOTICE OF APPEAL as to 341 Order, by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America (Stromquist, Matthew) (Entered: 09/15/2011)
09/16/2011	343	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 342 Notice of Appeal filed by Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture, Travelers Casualty and Surety Company of America to the U.S. Court of Appeals. (Retained counsel; Fee not paid) (Attachments: # 1 Docket Sheet, # 2 Preliminary Record including Notice of Appeal)(bjrsl,) (Entered: 09/16/2011)
09/16/2011	344	USCA Case Number 11-1430 for 342 Notice of Appeal filed by Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture, Travelers Casualty and Surety Company of America. Filing fee due in district court. (bjrsl,) (Entered: 09/16/2011)
09/19/2011	345	NOTICE OF APPEAL as to 148 Order, 237 Order and 248 Order by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland (Cantrell, Connor) Modified on 9/20/2011 to create links to orders being appealed.(bjrsl,). (Entered: 09/19/2011)
09/20/2011	346	LETTER Transmitting Notice of Cross-Appeal to all counsel advising of the transmittal of the 345 Notice of Cross-Appeal, filed by Fidelity and Deposit Company of Maryland to the U.S. Court of Appeals. (Retained counsel; Fee not paid) (Attachments: # 1 Docket Sheet, # 2 Preliminary Record including Notice of Cross-Appeal)(bjrsl,) (Entered: 09/20/2011)
09/20/2011	347	USCA Case Number 11-1434 for 345 Notice of Cross-Appeal filed by Fidelity and Deposit Company of Maryland. Filing fee due in district court. (bjrsl,) (Entered: 09/20/2011)
09/22/2011	348	TRANSCRIPT of Hearing - Reasonableness of Fees held on 8-18-11 before Judge Babcock. Pages: 1-16. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 12/27/2011. (Spitler, Kara) (Entered: 09/22/2011)
09/22/2011	349	TRANSCRIPT ORDER FORM re 342 Notice of Appeal by Defendants St. Andrews/Alliance Joint Venture, Torix General Contractors, LLC, Travelers Casualty and Surety Company of America (Stromquist, Matthew) (Entered: 09/22/2011)
09/23/2011	350	USCA Appeal Fees (USCA Case No. 11-1430); received payment of \$455, receipt number 41556 re 342 Notice of Appeal filed by Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture, Travelers Casualty and Surety Company of America (bjrsl,) (Entered: 09/23/2011)
09/26/2011	351	REPORTER TRANSCRIPT ORDER FORM filed by Kara Spitler; Transcripts ordered 08/18/11 as to 342 Notice of Appeal. Transcript filed on 09/22/11. (bjrsl,) (Entered: 09/26/2011)

		09/26/2011)
10/03/2011	352	USCA Appeal Fees (USCA Case No. 11-1434); received \$ 455 receipt number 41812 re 345 Notice of Appeal, filed by Fidelity and Deposit Company of Maryland (gmssl,) (Entered: 10/03/2011)
10/04/2011	353	TRANSCRIPT ORDER FORM re 345 Notice of Appeal, by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland (Cantrell, Connor) (Entered: 10/04/2011)
10/06/2011	354	LETTER TO USCA and all counsel certifying the record is complete as to 345 Notice of Appeal and 342 Notice of Appeal. (Appeal No. 11-1430 and 11-1434) (gmssl,) (Entered: 10/06/2011)
01/06/2012	355	SATISFACTION OF JUDGMENT 330 Amended Judgment, by Counter Defendant Fidelity and Deposit Company of Maryland, Intervenor Plaintiff Fidelity and Deposit Company of Maryland. (Cantrell, Connor) Modified on 1/6/2012 to create linkage (sah,). (Entered: 01/06/2012)
01/10/2012	356	MANDATE of USCA as to 345 Notice of Appeal, filed by Fidelity and Deposit Company of Maryland, 287 Notice of Appeal, filed by Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture, Travelers Casualty and Surety Company of America, 296 Notice of Appeal filed by Sun Construction Company, Inc., 342 Notice of Appeal filed by Torix General Contractors, LLC, St. Andrews/Alliance Joint Venture, Travelers Casualty and Surety Company of America : In accordance with 10th Cir. R. 33.1. and upon consideration of the stipulation of the parties to voluntarily dismiss the appeals, these appeals are dismissed. (USCA Case No. 11-1145, 11-1168, 11-1430 & 11-1434) (Attachments: # 1 USCA Order)(bjrsl,) (Entered: 01/10/2012)

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